

Part A

Introduction and General Guidelines

Blacktown City Council

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Amendments

Amendment No	Date adopted by Council	Date of effect	Parts which have been changed	Nature of amendments
2025-A	26 November 2025	1 February 2026	Parts A, C, E and H	House-keeping amendments

Table A. List of amendments

1 Introduction

Blacktown Development Control Plan (DCP) 2015 was prepared under Section 74C of the *Environmental Planning and Assessment Act 1979* and *Environmental Planning and Assessment Regulation 2000*. The Plan was adopted by Council on 15 July 2015 and came into effect on 29 July 2015.

When assessing Development Applications (DAs), Council must consider the relevant provisions of Blacktown DCP 2015. This is a requirement under Section 79C of the *Environmental Planning and Assessment Act 1979.*

Compliance with this DCP does not guarantee that development consent will be granted, as Section 79C of the *Environmental Planning and Assessment Act 1979* contains a number of other matters that must also be considered in determining DAs.

1.1 Land to which this DCP applies

Blacktown DCP 2015 applies to all land within the Blacktown Local Government Area that is zoned under Blacktown Local Environmental Plan (LEP) 2015.

1.2 Relationship of this DCP to other Acts, plans and policies

This DCP variably relates to the following legislation and policies:

(a) *Environmental Planning and Assessment Act 1979*

(b) *Environmental Planning and Assessment Regulation 2000*

(c) Relevant State Environmental Planning Policies and Environmental Planning Instruments

(d) *Local Government Act 1993*

(e) Building Code of Australia

(f) Land and Environment Court Planning Principles

If there are any inconsistencies between the controls within the documents listed above and the Blacktown DCP 2015, the Acts, Plans and Environmental Planning Instruments within the above list prevail. Generally not all of these Acts, Plans and Environmental Planning Instruments will be relevant to every proposal.

1.2.1 State Environmental Planning Policies

State Environmental Planning Policies (SEPPs) are a series of legal planning documents prepared by the New South Wales State Government. In some cases SEPPs apply to land within Blacktown and it is important to review these documents prior to applying the provisions of Blacktown DCP 2015. The complete list of SEPPs that are currently in force across NSW can be viewed by visiting the NSW Legislation website at: http://www.legislation.nsw.gov.au.

Examples of how SEPPs may apply to development in Blacktown are as follows:

(a) *State Environmental Planning Policy (Affordable Rental Housing) 2009* - this applies to specific land uses such as boarding houses and group homes

(b) *State Environmental Planning Policy (Building Sustainability Index: BASIX) 2004* - this applies to all residential development

(c) *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* - this informs what types of building works do not require a Development Application to be lodged with Council

(d) *State Environmental Planning Policy (Sydney Region Growth Centres) 2006* - this policy provides controls for certain lands within the Blacktown Local Government Area that are located within the North West Growth Centre. The Blacktown DCP 2015 is not applicable to the land located within this area.

Council can provide advice as to whether any SEPPs apply to either the land or type of works proposed. In the event of an inconsistency between Council's Blacktown LEP 2015 or Blacktown DCP 2015 and a SEPP, the provisions within the SEPP shall prevail unless otherwise stated in the SEPP.

1.2.2 Blacktown Local Environmental Plan 2015

Blacktown DCP 2015 should be read in conjunction with the Blacktown LEP 2015 Written Statement and associated LEP maps.

Blacktown LEP 2015 is a legal instrument that specifies how land within the Blacktown Local Government Area is zoned and what types of development are permitted (either with or without Council's consent) and prohibited within each zone. The Blacktown LEP also contains a number of clauses that affect how land within Blacktown can be developed and used.

Blacktown DCP 2015 is intended to support the LEP by providing more detailed standards and guidelines that have been adopted by Council for development within the Blacktown Local Government Area. These standards are applied in addition to the provisions contained in Blacktown LEP 2015. In the event of an inconsistency between Blacktown LEP 2015 and Blacktown DCP 2015, the provisions contained in the LEP prevail.

1.2.3 Section 94 contributions

Developer contributions are essential in providing access to the infrastructure and facilities that support the high quality of life that residents of Blacktown enjoy.

Council has adopted a number of Contributions Plans which have been prepared under Section 94 of the *Environmental Planning and Assessment Act 1979*. These plans require persons or entities developing land within the Blacktown Local Government Area to pay monetary contributions, provide capital works (works in kind), and/or dedicate land in order to help fund the increased demand for public amenities and infrastructure generated as a result of their developments.

All of Council's current Section 94 Contributions Plans can be viewed online at:

www.blacktown.nsw.gov.au

1.3 Aims

This Part of the DCP has been prepared to:

(a) Provide detailed policies and guidelines to ensure that all development within Blacktown City is consistent with Council's strategic long-term vision

(b) Provide information and guidance in relation to the Development Application process.

1.4 Objectives

The objectives of this Part of the DCP are to:

(a) Provide a comprehensive document that details a framework for the development of land in the Blacktown Local Government Area

(b) Clearly set out the processes, procedures and responsibilities for the involvement of the community and key stakeholders in the development of land

(c) Promote development that is consistent with Council's vision of creating a living environment

(d) Protect and enhance the natural and built environment, and ensure that satisfactory measures are incorporated to ameliorate any impacts arising from development

(e) Encourage high quality development that contributes to the existing or desired future character of the area, with particular emphasis on the integration of buildings with a landscaped setting

(f) Protect and enhance the public domain

(g) Encourage a high standard of aesthetically pleasing and functional development that sympathetically relates to adjoining and nearby developments

(h) Provide safe and high quality environments, that also promote the health and wellbeing of residents, workers and visitors of the Blacktown Local Government Area.

(i) Ensure that development incorporates the principles of Ecologically Sustainable Development (ESD).

1.5 The structure of Blacktown DCP 2015

Blacktown DCP 2015 consists of a written document and associated DCP Maps which can be accessed via Council's website.

The written document is divided into the following Parts:

Part A – Introduction and General Guidelines
Part B – Development in the Rural Areas
Part C – Development in the Residential Areas
Part D – Development in the Business Areas
Part E – Development in the Industrial Areas
Part F – Telecommunications Facilities
Part G – Site Waste Management and Minimisation
Part H – Landfill Guidelines
Part I – Contaminated Land Guidelines
Part J – Water Sensitive Urban Design and Integrated Water Cycle Management
Part K – Supplementary Provisions for Specific Sites in Established Areas
Part L – Stonecutters Ridge
Part M – The Ponds
Part N – Ashlar Precinct
Part O – Mount Druitt

Part A is applicable to all DAs and provides overall guidance on the operation of Blacktown LEP 2015 and Blacktown DCP 2015, the submission of DAs and the general requirements of Council.

Parts B to E and K to O provide specific information for those wishing to carry out development on land zoned rural, residential, business, industrial and open space, or in specific new release areas and other relevant sites respectively throughout the City of Blacktown.

Part F provides guidelines for the location and siting of telecommunications facilities and Part G provides guidelines designed to give a consistent approach to the minimisation of waste

generation and the overall environmental effects of waste. Parts H to J provide guidelines on the control of landfill, contaminated land and integrated water cycle management.

1.6 DCP and LEP maps

Blacktown DCP 2015 is accompanied by a series of maps which provide a variety of information, including contours, the location of major easements, roads and allotment boundaries. These maps are referred to as 'DCP maps'. The DCP maps also provide information about proposed changes such as new road patterns and proposed road closures. These maps are accessible to the public via Council's online mapping system, at https://www.blacktown.nsw.gov.au/Plan-build/Stage-2-plans-and-guidelines/Online-planning-tools/BLEP-2015-Maps-online

Blacktown LEP 2015 is also accompanied by a series of maps containing a wide range of information, including zoning, development controls, environmental constraints and other issues. The LEP maps are also available on Council's website.

1.7 How to use Blacktown Development Control Plan 2015

To determine Council's requirements, you need to know the zoning of the land which you intend to develop or are interested in (see Blacktown LEP 2015). Council's DCP map can assist in providing further details, to determine which Parts of Blacktown DCP 2015 are relevant. This is reliant on the location, zoning and proposed works to the site.

Once you know which Parts of Blacktown DCP 2015 are relevant to your proposed development, you should carefully read each section, taking note of Council's requirements for the type of development you propose.

You should plan and design your proposal to comply with the guidelines in Blacktown DCP 2015. If strict compliance is impractical or you believe to be unreasonable, a pre-lodgment meeting with Council officers is advisable and easily arranged. You should discuss any proposed variation or enquiry with Council at a pre-lodgment meeting or over the phone prior to submitting your DA.

2 Submitting a Development Application

2.1 When is a Development Application required?

Council recommends that a clear and correct property description and a specific description of the development proposal is obtained before seeking advice. This advice should be used as a guide. Council encourages applicants to undertake their own research. Council will use this information and refer to Blacktown LEP 2015 (as well as other legislation) to advise the correct course of action, which either will be:

(a) Lodging a Development Application (DA) with Council

(b) Lodging a Complying Development Certificate, whether with Council or a private certifier.

In some cases development proposals do not require a DA. In these circumstances the proposed works are categorised as either exempt development or complying development. The *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* provides details on exempt and complying development. If the proposal is for exempt development, no formal documentation is required.

A Complying Development Application form and Development Application form can be found on Council's website:

https://www.blacktown.nsw.gov.au/Plan-build/Stage-1-find-out/Approval-you-need

2.2 Preparing your Development Application

The first step in preparing a DA is to complete all relevant sections of Council's Development Application form.

It is vital that your DA is accompanied by all of the relevant information and documentation as outlined in Blacktown DCP 2015. An incomplete or incorrect DA can lead to significant delays in the processing of your application, or ultimately refusal.

If you propose to build new buildings or structures or alter existing buildings, you must submit at a minimum 4 copies of plans, drawn to an appropriate scale and clearly describing all proposed works and buildings, the site plan, floor plans and elevations. The plans must show existing external features such as kerb and gutter, power poles and the like and include a drainage plan showing the proposed means of connecting stormwater discharge into an acceptable drainage system. Council's suggested scales for the abovementioned plans are:

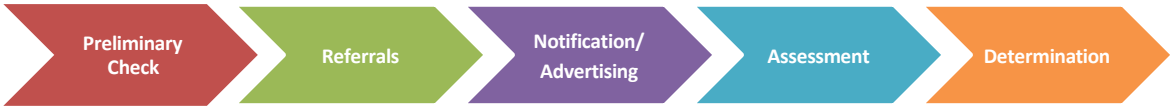
(a) Floor plans at 1:100
(b) Site plans at 1:200
(c) Large development plans at 1:500.

Additionally, 6 copies of plans reduced to A4 should be included as part of the DA and all documentation should regardless be submitted in an electronic format.

When complete, your DA (completed DA form, written documentation, DA plans and DA fees) should be submitted to Council.

2.3 What happens to your Development Application?

Your DA will go through the following steps:



2.3.1 Preliminary check

Once the DA submission is received it is given a preliminary check to see if the DA form has been filled out correctly and contains all of the information required for your proposal to be properly assessed. If there is insufficient or inaccurate information, you will be asked to supply additional information or your DA will not be accepted for assessment.

2.3.2 Referrals

Most DAs are referred to various Departments within Council for expert advice e.g. Building Surveyors and Engineering staff for comments on building and engineering matters. Whilst your DA submission is not expected to provide 'working drawings' showing detailed structural and design information, Council checks your proposal for obvious problems that may impact upon the suitability or appropriateness of your proposal.

Some DAs (usually for major proposals) are referred to State Government Departments, such as the NSW Office of Water or NSW Roads and Maritime Services (e.g. major proposals fronting a main road). If such a referral is necessary your DA will be an Integrated Development requiring the consent of an external authority and may take longer to process. Where such referrals are required, additional copies of plans will be necessary from applicants.

2.3.3 Notification

The majority of DAs are notified in writing to surrounding and potentially affected residents and property owners. Notification aims to inform residents of the proposed works and provide opportunity for the public to have their say which in turn may bring to light matters that can influence the outcome of Council's assessment of the proposed works. Section 3 of this Part provides more information on the notification process.

2.3.4 Assessment

Section 79C of the *Environmental Planning and Assessment Act 1979* lists the matters that Council must consider in assessing any DA. As part of this assessment, Council will consider the impacts of the development on neighbouring properties and therefore take into consideration any submissions received from the public. A recommendation is made either to approve (unconditionally or subject to certain conditions) or refuse the DA. Council then determines your DA.

2.3.5 Determination

Once the decision is made you will be advised in writing.

If you receive a consent with conditions you must read the document carefully, taking note of each condition.

In most cases where building or site work is proposed, you will require a Construction Certificate (CC) and possibly engineering design approval. If a CC and DA are submitted together, building approval cannot be granted until Development Consent has been issued. However, a CC will be processed as far as possible by Council pending the issue of Development Consent.

3 Notification

3.1 Objectives

Recognising the importance of public consultation, the following section has been prepared to:

(a) Provide for public participation in the development assessment process where it is considered that the proposed activity may have an effect upon the enjoyment of other property

(b) Set out the matters for which Council will have regard when forming its opinion as to whether or not the enjoyment of adjoining land may be detrimentally affected by a proposed development

(c) Set out the criteria for notifying potentially affected persons

(d) Specify the circumstances when notification is not required

(e) Detail the form that notification will take and an applicant's responsibility to provide a notification plan.

3.2 Definitions

Adjoining land means land which abuts an Application site or is separated from it only by a pathway, driveway or similar thoroughfare.

Affected person means a person who owns or occupies *adjoining land* or *neighbouring land,* the enjoyment of which may be detrimentally affected by a proposed development.

Application site means the parcel of land to which a Development Application relates.

Building includes any building, part of a building and any structure or part of a structure.

Development Application means an Application for consent under Division 1 of Part 4 of the *Environmental Planning and Assessment Act 1979* to carry out development.

Neighbouring land means any land, other than adjoining land, which is nearby a development site (and may include land in a neighbouring local Council area).

Notification plan means the plan showing the height and external configuration of buildings which accompanies a Development Application and includes such detail as described in this section.

Land includes any building or part of a building erected on the land.

Owner means:

(a) The person or persons who appear on Council's records to be the owner of the land at the date of notification

(b) In the case of land that is the subject of a strata scheme under the *Strata Schemes (Freehold Development) Act 1973*, or a leasehold strata scheme under the *Strata Schemes (Leasehold Development) Act 1986*, the Owners' Corporation

(c) In the case of land that is a community, precinct or neighbourhood parcel within the meaning of the *Community Land Development Act 1989*, the Association for the parcel.

3.3 When does notification apply

Notification is required for the majority of Development Applications in accordance with the relevant provisions of the *Environmental Planning and Assessment Act 1979*. Examples include:

(a) Development Applications for approval to erect a building

(b) Amendments to an undetermined Application to erect a building

(c) Certain Development Applications involving the use of a building or another specified work

(d) Modifications to Development Approvals.

3.4 Persons to be notified

Written notice of a Development Application will be sent to those persons who appear to Council to own or occupy adjoining land and neighbouring land if, in Council's opinion, the enjoyment of that land may be detrimentally affected or impacted by the development proposal. This could include land opposite or otherwise distanced from the Application site.

Where adjoining or neighbouring land comprises a strata titled or community titled development, Council may notify, in addition to the relevant Owners' Corporation or Association, those individual owners / occupiers of land within the complex which may, in Council's opinion, be detrimentally affected by the development proposal.

Upon the lodgment of a Development Application, Council will determine who may be detrimentally affected in terms of the matters to be considered.

Council may also broaden the extent of notification following any inspection of the development site.

3.5 What types of impacts are of concern

Council will give notice of an Application to affected persons where, in its opinion, the enjoyment of land may be detrimentally affected by or in relation to:

(a) The views to and the view from the land
(b) Overshadowing
(c) Privacy
(d) Noise, odour or any other potential polluting emission
(e) The visual quality of the development in relation to the streetscape
(f) The scale or bulk of the proposed development
(g) The siting of the proposed development in relation to site boundaries
(h) The proposed hours of use for the development
(i) Light spillage or reflection
(j) Means of access to or provision of parking on the proposed development site
(k) The amount of traffic likely to be generated by the proposed development
(l) Drainage
(m) The social and economic impacts of the proposal.

3.6 Notice to be given to amended applications

An applicant may make an amendment to an application at any time prior to the determination of the Application. Council will re-notify amendments which either alter the external configuration or siting of a development and which, in Council's opinion, cause a greater or more serious impact on any affected person.

3.7 Notice to be given for applications for modified approvals

An applicant may lodge an Application to modify an approval (under Section 4.55 of the *Environmental Planning and Assessment Amendment Act 1979*) if Council is satisfied that the development as proposed to be modified remains substantially the same development as that originally approved and that the proposed modification is of minimal environmental impact consistent with Section 4.55(1A) of the EP&A Act.

Council will re-notify those affected persons who were notified of the original Application and any other person it considers relevant, inviting comment on the amendments.

Submissions received in relation to the modified proposal will be considered in Council's assessment of the Application.

3.8 Applications which will not be notified

Notification is not required where, in the opinion of Council, the enjoyment of land will not be detrimentally affected in terms of the matters listed under Clause 3.5 of this Part of the DCP.

Notification will not be made of a Development Application if it is exempt or complying development as set out in *State Environmental Planning Policy (Exempt and Complying Development)* 2008.

Examples of Development Applications which do not require notification include:

(a) Strata subdivision proposals

(b) Subdivisions involving adjustments to property boundaries

(c) Land subdivisions, except where they depart in a significant way from Council's adopted DCP road pattern and where the development expectations of adjoining land are affected

(d) Uses of buildings, except at Council's discretion

(e) Single rural dwellings on properties with an area greater than 4000sq.m, where the proposed dwelling is located a minimum of 20m from the boundaries of the site.

3.9 Information to be included in written notice and notification plan

The written notice to be forwarded by Council to any potentially affected person will contain the following information:

(a) A description and address of the site

(b) The proposed use of any building

(c) The name of the applicant

(d) The time period within which written submissions are to be made

(e) A notification plan.

For the purposes of this section, the notification plan shall:

(a) Be provided on an A4 or A3 size sheet

(b) Be of a scale which will clearly delineate the features of any proposed building

(c) Show the height and external configuration of any proposed building in relation to the site on which it is proposed to be erected

(d) Include a site plan showing the relationship of any proposed building to the boundaries of the land

(e) Clearly define any new building or additions to existing buildings by appropriate means of cross hatching

(f) Be appropriately dimensioned to indicate size, height and position of any proposed building in relation to the site.

Further to the written notification required above, and in addition to the form of notification that may be legally specified in certain circumstances, Council also requires that other types of development, as listed in Table 3.1, be advertised in a local newspaper.

Table 3.1 specifies, in part, the minimum advertising period required for particular development types.

Category	Development type	Adjoining land	Neighbouring land	Local newspaper	Public authority	Notification period (where applicable)
Residential	Small scale ancillary residential (Building Code of Australia, Class 10 Buildings)	✔☐	*	×	×	7
	Construction of single storey and 2 storey dwelling houses and ancillary development	✔☐	*	×	*	7
	Dwelling houses (3 storeys)	✔☐	*	×	*	14
	Dual occupancy	✔☐	✔☐	×	*	14
	Multi dwelling housing and attached dwellings	✔☐	✔☐	✔☐ (where 10 or more dwellings)	*	14
	Residential flat building	✔☐	✔☐	✔☐	*	14
	Development under the provisions of *SEPP (Housing for Seniors or People with a Disability) 2004*	✔☐	✔☐	✔☐	*	14
Commercial	New development	✔☐	*	×	*	14
	Additions / alterations to commercial buildings	✔☐	*	×	*	14
	Change of use / internal alterations	×	×	×	*	×

Category	Development type	Adjoining land	Neighbouring land	Local newspaper	Public authority	Notification period (where applicable)
Industrial	New development	✔☐	*	×	*	14
	Additions / alterations to industrial buildings	✔☐	*	×	*	14
	Change of use / internal alterations	*	×	×	*	*
	Potentially offensive or hazardous industries	✔☐	✔☐	✔☐	*	14
Subdivision	Community title subdivision	✔☐	*	×	*	14
	Subdivision, except for the categories below	✔☐	*	×	*	14
	Strata subdivision	×	×	×	*	×
	Boundary adjustment	×	×	×	*	×

Category	Development type	Adjoining land	Neighbouring land	Local newspaper	Public authority	Notification period (where applicable)
Other	Any land use in the RU4 Zone	✔☐	*	×	*	14
	Major modification to Development Consent	✔☐	*	×	*	14
	Demolition	✔☐	*	×	*	7
	Professional consulting rooms, home industry, boarding houses, place of public worship, child care centres	✔☐	✔☐	*	*	14
	Education establishments	✔☐	✔☐	✔☐	*	14
	Change of use of a dwelling to a non-residential use	✔☐	✔☐	×	*	14
	Sex services premises, premises seeking consent to extend trading beyond 10pm, entertainment facilities, pubs, night clubs, bars, amusement centres and the like	✔☐	✔☐	✔☐	*	14
	Applications involving heritage items	✔☐	✔☐	*	*	14
	Local Environmental Plan	✔☐	✔☐	✔☐	*	28 (or as directed by DoPHI)
	Development Control Plan	✔☐	✔☐	✔☐	*	28
	Section 94 Plans	✔☐	✔☐	✔☐	*	28

Category	Development type	Adjoining land	Neighbouring land	Local newspaper	Public authority	Notification period (where applicable)
	Designated development	✔☐	✔☐	✔☐	*	Min 30 days after 1st day of notice

Table 3.1 Notification policy for different classes of development

An application for a major modification to a Development Consent is also to be notified to those persons who previously objected or were previously notified at the initial Development Application stage.

LEGEND

✔	Required
×	Not required
*	At officer's discretion

3.10 Submissions

3.10.1 Period during which a person may inspect a plan relating to an application and make a submission

A person may inspect a plan and make a submission within the period specified in Table 3.1. The notification, where necessary, varies depending on the type of development, but all submissions must be received by Council within the specified period from the commencement of the notification.

A copy of the notification plan will be available for inspection at Council's Information Centre during the notification period.

3.10.2 Form of submissions from persons notified and the general public

Submissions made in respect of applications must be in writing (hard or soft copy) and addressed to the General Manager.

Submissions must clearly indicate the name and address of the person making the submission and details of the proposal to which the submission relates.

Should an objection be part of the submission, the reasons for the objection are to be provided.

Any information included in submissions may be made available to third parties in accordance with relevant legislation.

A Disclosure Statement must be lodged by any person making a submission where a reportable political donation or gift has been made to certain people or organisations within 2 years before the submission is made. Further information in relation to when a Disclosure Statement is required, and a copy of the required form to make such a Statement, are available from Council's website www.blacktown.nsw.gov.au or from the Blacktown City Information Centre on telephone number 9839 6000.

3.10.3 Consideration of submissions

Council will consider all submissions received within the specified time period before determining a Development Application.

Council is not bound to adopt or support any objection that may be made in response to its notification of potentially affected persons in its determination of an Application. Each Application will be assessed on its merits.

As Council is keen to ensure that all Development Applications are processed in a timely manner, it is imperative that all submissions be lodged with and received by Council within the notification period.

3.10.4 Notification of determination

Each person who made a submission will be informed of the final decision in determining an Application.

4 Environmental protection

4.1 Introduction

Council, as well as developers, has a responsibility to ensure that development is undertaken in a manner which will enhance the existing environment or at least minimise any likely adverse environmental impacts. This section outlines some Council requirements for safeguarding the environment as a result of development. Council is required to assess the environmental impact of each Development Application under 'Matters for Consideration' which are in Section 4.15 of the *Environmental Planning and Assessment Act 1979*.

4.2 Areas requiring fill

The filling of land requires separate development consent, except where the proposed fill forms part of a Development Application for overall development of a site or is exempt under the provisions of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008.*

The DCP maps on Council's website indicate those areas which require significant filling to raise lot and land levels above the predicted developed 100-year Average Recurrence Interval flood level of adjacent creeks.

The fill limits and areas shown on the DCP map are indicative only. Final fill areas will be determined by detailed trunk drainage designs, allotment survey information, the type of development proposed and adjoining development constraints (e.g. existing or future roadworks).

For these areas Council will impose conditions of development consent regarding type of fill and compaction of soil. As detailed engineering plans may be necessary, developers will be required to consult with Council prior to commencement of filling operations.

4.3 Heritage

4.3.1 Specified heritage items

Schedule 5 of Blacktown LEP 2015 lists certain buildings, works and relics which are defined as 'heritage items', comprising both European and Indigenous items. The location of these items is indicated on the Blacktown LEP Heritage Map.

Clause 5.10 of Blacktown LEP 2015 sets out the specific requirements relating to proposals affecting heritage items and items of archaeological heritage, or located in the vicinity of heritage items listed in Schedule 5.

4.3.2 Development in the vicinity of a heritage item

The setting of a heritage item often contributes to its heritage significance. With an historic curtilage, the setting can extend beyond current property boundaries, and will be different for each heritage item. These provisions apply to development that is adjoining and/or adjacent to a heritage item.

- **Objectives**

  (a) Ensure that development does not adversely affect the heritage significance of heritage items, heritage groups or archaeological sites as well as their settings, distinctive streetscape, landscape and architectural styles

(b) Ensure that development in the vicinity of a heritage item is responsive and respectful in terms of height, setback, form and overall design.

- **Controls**

(a) Development Applications on land adjacent to and/or adjoining a heritage item must be accompanied by a Heritage Impact Statement that addresses:
  (i) The impact of the proposed development on the heritage significance, visual curtilage and setting of the heritage item
  (ii) The size, shape and scale of, setbacks for, and the materials to be used in, any proposed buildings or works
  (iii) Any modifications that are needed to reduce the impact of the proposed development on the heritage significance of the heritage item

(b) The design and siting of new works must complement the form, orientation, scale and style of the heritage item

(c) Development must maintain significant or historic public domain views to and from the heritage item

(d) Development in the same street as a heritage item that is part of a streetscape of buildings of consistent style, form and materials should incorporate the dominant style, form and materials of the streetscape

(e) Development is not permitted beneath the drip zone of trees that are integral to the significance of a heritage item

(f) Materials and colours of the facade of new developments must be complementary to an adjoining and/or adjacent heritage item

(g) Development must have effective screen planting on side and rear boundaries adjoining a heritage item, with planting to achieve a minimum mature height of 10m

(h) Front and side fences are to be no higher than the fence on an adjoining heritage item. Front fences should be open and transparent, such as timber picket or metal palisade. Side fences should be timber. No metal panel fencing is to be constructed on the boundary of any heritage item.

4.3.3 Archaeological sites and areas of significance

- **Known archaeological sites**

These are sites which have been recorded and managed by the Office of Environment and Heritage (OEH) via the Aboriginal Heritage Information Management System (AHIMS). Some are listed in Schedule 5 of Blacktown LEP 2015 and there are others that are indicated on the DCP map. As a condition of development consent to develop land on which a site has been located, the applicant will be required to consult with the OEH to determine its requirements, it is advised to undertake this at the earliest possible stage as it may be necessary to take into account the location of the archaeological site in designing the development or, alternatively, obtain a permit to destroy

in relation to the development.

- **Areas of high archaeological significance**

  These areas are indicated on Figure 4.1 and are shown in detail on the DCP map on Council's website. There is a high likelihood of archaeological sites occurring in these locations. Therefore, it is advised to contact OEH at the earliest possible stage.

  An Aboriginal Heritage Impact Permit (AHIP) application will likely be required. An AHIP is a legal document issued by the OEH which allows applicants to remove or in some way impact the object or place when no other options are available. The OEH aims to protect and manage Aboriginal objects and places. An AHIP is a last resort.

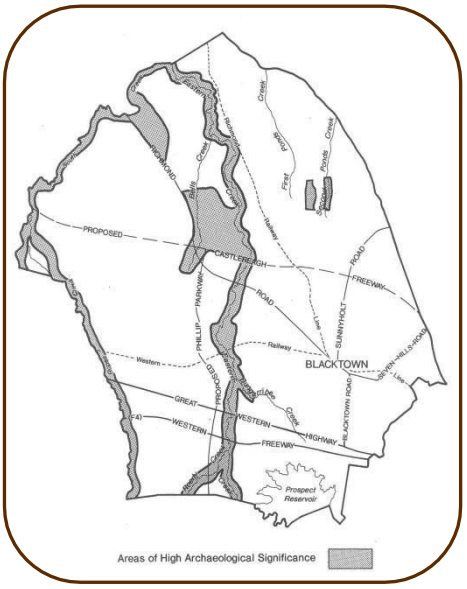


Figure 4.1 Areas of high archaeological significance

- **Other areas**

  Areas other than those noted above are substantially developed. There is little likelihood of finding archaeological sites in such areas and no further archaeological survey is required. However, some sites have been found in these areas. Sites which are found to have archaeological significance will have a condition of development consent requiring consultation with OEH.

  In addition to the above requirements, applicants are advised to ensure that they do not contravene the *National Parks and Wildlife Act 1974* relating to Aboriginal archaeological remains. In particular:

  (a) Anyone who discovers an Aboriginal relic must report it to the OEH

  (b) No-one is permitted to destroy, deface or damage an Aboriginal site or relic without an AHIP or OEH consent. This applies to all tenures of land including freehold property and Crown land

(c) Research work into sites, involving disturbing, excavating or collecting relics, requires a permit from the OEH.

4.4 Pollution control

The following requirements under this Section will be applied to all types of development in all zones, where relevant to the particular Development Application.

Air pollution

The emission of air impurities, as defined under the *Protection of the Environment Operations Act 1997*, is to be controlled to the satisfaction of Council at all times. Approval may be required from the Office of Environment and Heritage for some development.

Water pollution

If the premises are subject to licensing under the *Protection of the Environment Operations Act 1997*, any conditions of such a licence will form part of any development approval.

Noise pollution

Any machinery or activity considered to create a noise nuisance must be adequately sound- proofed in accordance with the provisions of the *Protection of the Environment Operations Act 1997*. The Environment Protection Authority may require certain premises to be licensed under the *Protection of the Environment Operations Act 1997*.

The use of mechanical plant and equipment may be restricted where sites are located near a residential area. Developments located near residential areas should be designed so that the development does not cause a noise nuisance.

4.5 Noise reduction

Expected traffic volumes on designated roads may create noise which will exceed the level generally acceptable by the community for residential development. Applicants wishing to develop residential land adjacent to designated roads should have regard to the future amenity of the residential development so created. Noise can be reduced by sensitive site planning, architectural design, construction techniques and noise barriers.

4.6 Bush fire prone land

Development subject to bush fire risk will be required to address the requirements of the NSW Rural Fire Service Guidelines entitled *Planning for Bush Fire Protection (2019)*.

4.7 Development adjoining rail corridors and high volume roads

Development in areas that are in or adjacent to rail corridors or high volume roads should consider NSW Department of Planning's *Development Near Rail Corridors and Busy Roads – interim guideline.*

4.8 Cool roofs

Urban heat reduction is to be considered in the design and selection of materials in all built development. The Solar Reflectance Index is an indicator of the ability of a roof surface to return solar energy to the atmosphere. All developments must meet minimum Solar Reflectivity Index values with the following specific exceptions:

- where heritage requirements preclude the use of cool roofing materials, or
- it can be demonstrated that glare would be a problem for particular locations above the building's roof.

Roofing should achieve nominated Solar Reflectance Index minimums:

Roof Pitch	Solar Reflectance Index minimum
Less than 15°	64
Greater than 15°	34
Rooftop terraces	28

Table 4.1 Solar Reflectance Index based on angle of roof pitch

- at least 75% of the roof area should meet nominated Solar Reflectance Index values and/or be designed as a green roof. Areas where solar panels (Photo Voltaic) are mounted flat on a roof can be excluded and all other roof areas with Photo Voltaic panels count toward the Cool Roof area calculation.
- all roof materials must have a minimum 3-year manufacturer guarantee.

To demonstrate compliance, provide:

- a site plan illustrating all roof surface areas and associated Solar Reflectance Index values or notation as green roof, and
- a material data sheet for compliant roofing and hard-scaping materials highlighting the three year or initial Solar Reflectance Index for the product.

5. Biodiversity, vegetation and tree preservation

Biodiversity, vegetation and trees play a vital role in preserving the natural beauty and ecological sustainability of our city and provide many benefits by:

(a) combating the urban heat island effect

(b) improving human health both mental and physical

(c) decreasing energy costs

(d) improving air quality

(e) contributing to the character and amenity of the urban environment

(f) maintaining natural ecosystems and providing habitat for local fauna

(g) reducing erosion and absorbing stormwater runoff.

In certain circumstances vegetation, including trees, require pruning or removal.

Permission to remove vegetation can only be obtained through specific approval processes.

These process pathways are:

- development applications
- native vegetation permit
- tree work permit.

5.1 Definitions

Biodiversity is defined as the variety of living animal and plant life from all sources. It includes diversity within and between species as well as the diversity of ecosystems and life it supports.

Clearing of vegetation under the *State Environment Planning Policy (Biodiversity and Conservation) 2021* includes:

(a) cutting down, felling uprooting, killing, poisoning, ringbarking, burning or otherwise destroying the vegetation, or

(b) lopping or otherwise removing a substantial part of the vegetation.

Habitat includes:

(a) an area periodically or occasionally occupied by a species or ecological community, and

(b) the biotic and abiotic components of an area.

Native vegetation is any of the following types of plants native to New South Wales:

(a) trees (including any sapling or shrub or any scrub)

(b) understorey plants,

(c) groundcover (being any type of herbaceous vegetation),

(d) plants occurring in a wetland.

A plant is native to New South Wales if it was established in New South Wales before

European settlement. The regulations may authorise conclusive presumptions to be made of the species of plants native to New South Wales by adopting any relevant classification in an official database of plants that is publicly accessible.

Permit system (for tree work and/or clearing of native vegetation) is a set of rules and processes for 'clearing' trees and vegetation that is not linked to a development application and is not deemed exempt.

Recommended planting list is published in Council's Vegetation Management Plan Guideline booklet: https://www.blacktown.nsw.gov.au/Plan-build/Stage-2-plans-and-guidelines/Native-vegetation-management

Trees are long lived perennial (living longer than 1 year) vegetation that have a trunk and branches and can reach a height of more than 3 metres.

Vegetation is broadly the collection of either trees, understorey plants, groundcover (being any type of herbaceous vegetation) plants occurring in a wetland and/or grasses (plant life) whether native or non-native that can be found in a particular area.

5.2. Objectives

The objectives of vegetation and tree preservation are to:

(a) ensure that all new development protects and retains existing suitable trees and vegetation and provides opportunities for the growth of native vegetation and newly planted trees

(b) ensure that significant trees and vegetation are protected to retain their special historical, cultural, environmental or amenity values

(c) identify opportunities to protect and increase tree canopy across our City to deliver ongoing environmental, economic and social benefits to our community

(d) establish the procedural framework and requirements governing the pruning, clearing, removal and subsequent replacement of trees and vegetation within Blacktown City

(e) reduce urban heat and promote urban cooling by the retention and planting of trees and vegetation

(f) provide more livable, sustainable and resilient living environments to the residents and visitors to Blacktown City

(g) ensure that development avoids and minimises negative impacts on trees, vegetation and biodiversity, particularly threatened species, populations and ecological communities

(h) ensure that developments that cannot completely avoid impacts to threatened species are offset per the *New South Wales Biodiversity Conservation Act 2016*.

5.2.1 Native vegetation

Native vegetation is protected by:

(a) *Biodiversity Conservation Act 2016 (NSW)*

(b) *State Environmental Planning Policy (Biodiversity and Conservation) 2021 (NSW)*

(c) *Blacktown Local Environment Plan 2015*, including:

- Section 7.2 Terrestrial biodiversity
- Section 7.3 Riparian land and watercourses.

Native vegetation is identified by:

(a) New South Wales Biodiversity Values Map at https://www.lmbc.nsw.gov.au/Maps/index.html?viewer=BOSETMap

(b) NSW native vegetation mapping set available on the NSW Government SEED portal at https://geo.seed.nsw.gov.au/vertigisstudio/web/?app=cabd04d595ec43c1aaf4298e80e83ec2&workflow=36ea26c1-e8e2-4355-8600-5d1558259ad3&workflowParams={%22portalItems%22:%20[{%22itemId%22:%20%22a2642dbeb0d34a13a0dc9e9585799b71%22,%20%22layerIds%22:%20%220,1,2,3%22}]}

(c) BLEP 2015 Terrestrial Biodiversity Map at https://www.planningportal.nsw.gov.au/publications/environmental-planning-instruments/blacktown-local-environmental-plan-2015

5.2.2 Native vegetation and development controls

Development and clearing controls for native vegetation are in place to support the key requirements of the *New South Wales Biodiversity Conservation Act 2016.* These controls establish a framework to avoid, minimise and offset the impacts of proposed development and land use change on biodiversity.

Under Chapter 2 of the *State Environmental Planning Policy (Biodiversity and Conservation) 2021*, Council may issue permits for clearing of native vegetation in non—rural areas.

Council may issue permits for clearing of vegetation

(a) A council may issue a permit to a landholder to clear vegetation to which this Part applies in any non-rural area of the State.

(b) A permit cannot be granted to clear native vegetation in any non-rural area of the State that exceeds the biodiversity offsets scheme threshold as outlined in Section 5.2.3 of this Part.

(c) A permit under this Part cannot allow the clearing of vegetation:

i. that is or forms part of a heritage item or that is within a heritage conservation area, or

ii. that is or forms part of an Aboriginal object or that is within an Aboriginal place of heritage significance, unless the council is satisfied that the proposed activity,

is of a minor nature or is for the maintenance of the heritage item, Aboriginal object, Aboriginal place of heritage significance or heritage conservation area, or

would not adversely affect the heritage significance of the heritage item, Aboriginal object, Aboriginal place of heritage significance or heritage conservation area.

A permit may be granted under this Part subject to any conditions specified in the permit.

5.2.3 Biodiversity Offset Scheme

The Biodiversity Offsets Scheme (BOS) provides a mechanism to avoid, minimise and offset the impacts of development and some types of clearing on biodiversity in New South Wales. It is a key requirement of the *Biodiversity Conservation Act 2016 (NSW).*

The Biodiversity Offsets Scheme applies to a range of developments, land clearing and activities that meet certain thresholds, where the proposal is:

(a) likely to significantly affect a threatened species or threatened ecological community (as determined by the five-part Test of Significance), or

(b) seeking to undertake clearing or other prescribed impacts on native vegetation that occurs on the NSW Biodiversity Values Map (BVM), or

(c) exceeds the clearance area thresholds outlined in Table 5.1 below:

Minimum lot size	Proposed area of clearing
Less than 1 hectare	0.25 hectares
Less than 2 hectares	0.5 hectares
2-39 hectares	0.5 hectares
40-999 hectares	1 hectare

Table 5.1 Area clearing thresholds

or

(d) classed as a State significant development, unless a waiver has been sought from and granted by the State Planning Minister.

A Biodiversity Development Assessment Report (BDAR) is required to accompany applications to Council for all proposals that exceed the Biodiversity Offset Scheme.

The BDAR is to be prepared by an Accredited Assessor and must meet the minimum requirements under the Act and its regulations. A public register of accredited assessors is available at: https://customer.lmbc.nsw.gov.au/assessment/AccreditedAssessor

The Biodiversity Development Assessment Report is to identify and provide information on the impacts on any potential Serious and Irreversible Impact (SAII) entities for the consideration of the Consent Authority as per Section 10.2 of the Biodiversity Assessment Method. Note that for local developments, where a SAII impact is likely then Council as the Consent Authority must refuse the application as per Section 7.16 (2) of the *Biodiversity Conservation Act 2016*.

5.2.4 Flora and Fauna Assessment

A Flora and fauna assessment report is required for all proposals that do not trigger a Biodiversity Development Assessment Report, but do potentially impact upon:

(a) land mapped as Cumberland Plain Vegetation 2022, Conservation zoned land, Riparian corridors and protection Areas and/or Terrestrial Biodiversity in the Blacktown GIS Map layers, or via the links provided at section 5.2.1 in this document, or

(b) native vegetation which is potential habitat for threatened species, populations or part of an endangered ecological community as identified in Section 1.6 of the *Biodiversity Conservation Act 2016* or the *Fisheries Management Act 1994*, or

(c) natural and constructed wetlands, dams or other wet areas. Note a dam dewatering plan will also be required, or

(d) in stream creek works in riparian channels e.g., bridges, basins.

The Flora and Fauna Assessment must include any Five Part Test of Significance under Section 7.3 of the *Biodiversity Conservation Act 2016* that may be required. Any likely significant impact will result in the requirement for further investigation and the preparation of either a Species Impact Assessment or a Biodiversity Development Assessment Report.

The flora and fauna assessment is to give regard to Clause 7.2 and 7.3 of *Blacktown Local Environmental Plan 2015*.

5.2.5 Vegetation Management Plan

All proposals which are adjacent to, or likely to directly or indirectly impact upon environmental protection areas on public or private lands, will require a Vegetation Management Plan (VMP). The VMP will provide details on the protection, regeneration, restoration or reconstruction works to be undertaken.

All plans are to be prepared in accordance with Council's Vegetation Management Plan Guidelines (2019), available on Council's webpage at:

https://www.blacktown.nsw.gov.au/Plan-build/Stage-2-plans-and-guidelines/Native-vegetation-management

The implementation of a Vegetation Management Plan may be bonded with release of monies contingent upon regular stage reports to Council as a Condition of Consent.

The implementation of the Vegetation Management Plan and the ongoing management of environmental protection lands in perpetuity may be subject to bonding, conditions of consent or a positive covenant (Section 88B) to be registered on the relevant lot title.

5.2.6 Dewatering of wetlands, dams and wet areas

All development proposing dewatering of natural and constructed wetlands, dams or other wet areas are required to undertake assessments for biodiversity. This is to ensure measures are taken to reduce impacts on wildlife and to ensure humane treatment and relocation is undertaken. A dam dewatering plan also identifies and considers the risks of contaminated sediment and water disposal and protecting other water bodies from contamination and weed species. All developments seeking to de-water these areas will require a dam dewatering plan or decommissioning plan addressing the above.

5.2.7 Biodiversity Management Plan

A Biodiversity Management Plan (BMP) is required on all land where proposals are likely to directly or indirectly impact upon habitat features or native fauna adjacent to or within the area of work.

The Biodiversity Management Plan is to identify actions and mitigation measures to be undertaken to reduce the impact on biodiversity prior to, during and following land clearing for remediation, subdivision and construction works.

Development should avoid the fragmentation of exiting native vegetation and should seek to retain, or re-use habitat features and natural resources including rock outcrops, wetland areas, topsoil, mature tree hollows and native seed sources.

A Biodiversity Management Plan may include a flora and fauna report, dam dewatering plan, tree and bushland protection in the one document.

5.3 Vegetation and trees

5.3.1 Exempt vegetation and trees

The vegetation and tree species that are exempt from requiring approval to perform works are identified in **Appendix 1 and 2**.

Exempt trees do not need development approval or a Tree Work Permit from Council under Part 2.7 of the *State Environmental Planning Policy (Biodiversity and Conservation) 2021*.

5.3.2 Prescribed vegetation

Prescribed vegetation is:

(a) any collection of native vegetation, either trees, shrubs, and/or grasses (plant life) irrespective of size that:
- occurs on Council's Cumberland Plain Vegetation 2022, Riparian Protection Area (RPN) or Terrestrial Biodiversity (BIO Terrestrial Biodiversity) maps, or
- meets the definition of native vegetation

(b) any collection of trees plants and grasses (plant life) whether native or non-native located on private land irrespective of size:
- that is located on a heritage listed property, or
- that is located on a property located within a heritage conservation area, or
- that is, or forms part of, an Aboriginal object, or
- that is within an Aboriginal place of heritage significance.

Legal provisions for the preservation of prescribed vegetation are in force under *State Environmental Planning Policy (Biodiversity and Conservation) 2021.*

5.3.3 Prescribed trees

A prescribed tree is:

(a) any perennial tree (living longer than 1 year) or palm, whether native or introduced species, located on private land, that:
- has a height of more than 3 metres, and/or
- has a trunk diameter of more than 200mm measured 1.4 m above ground level, and
- is growing in the ground, not in a container

(b) any perennial (living longer than 1 year) tree or palm, whether native or introduced species, located on public land, irrespective of size

(c) any perennial (living longer than 1 year) tree or palm, whether native, or introduced species, irrespective of size that is:

- located on a heritage listed property, or
- located on a property located within a heritage conservation area, or
- within an Aboriginal place of heritage significance, or
- forms part of an Aboriginal object.

Legal provisions for the preservation of prescribed trees are in force under *State Environmental Planning Policy (Biodiversity and Conservation) 2021.*

5.3.4 Significant Tree and Vegetation Register

Vegetation including trees that have been identified as having significance in Blacktown City are listed on Council's Significant Tree and Vegetation register, available at:

https://www.blacktown.nsw.gov.au/Services/Tree-management/Trees-on-public-land

The trees and vegetation listed in the Significant Tree and Vegetation Register must be preserved. Removal should only be considered where all other available options have been exhausted.

The community and Council have identified these trees and vegetation as they either have significant amenity, historical, botanical value or are functionally important links to threatened fauna and biodiversity.

Members of the community must check with Council, prior to the design stage of any development, to determine whether or not a site has any tree or vegetation listed in the Significant Tree and Vegetation Register.

5.3.5 Pathways for tree and vegetation works

A development application, vegetation permit, or a tree work permit application is needed for any proposed works to prescribed vegetation and trees. Applications will be reviewed by Council and permits will be issued where appropriate. The type of application to be submitted depends on the location and the extent of works. These are identified in Tables 5.2 and 5.3 below.

Location	Extent of works	Application
Exempt vegetation	Species and works identified in Appendix 1 – Exempt vegetation	No application required
Land - Heritage listed item or located within a Heritage Conservation Area	Council is satisfied that the works are of a minor nature, as per Clause 5.10(3) of BLEP 2015	Native vegetation Permit Application
	Major works to any vegetation	Development application

Other Land – mapped, or partially mapped, as prescribed vegetation, where removal is not related to development	Clearing of prescribed native vegetation not subject to Biodiversity Offset Scheme (BOS)	Native Vegetation Permit Application
Other Land – vegetation removal related to development	Work to any prescribed vegetation for which development consent is required	Development application
Other Land – work that is contrary to a development consent	Work, including removal, to any prescribed vegetation that is required to be retained and protected under a development consent.	Section 4.55 application

Table 5.2 Pathways for vegetation works

Location	Extent of works	Application
Exempt trees	Species and works identified in **Appendix 2 – Exempt trees species and tree works**	No application required
Land - Heritage Listed Property	Council is satisfied that the works are of a minor nature, as per Clause 5.10(3) of BLEP 2015	Tree work permit application
	Major works to any tree	Development application
Land - Property located within a Heritage Conservation Area	Council is satisfied that the works are of a minor nature, as per Clause 5.10(3) of BLEP 2015	Tree work permit application
	Major works to any tree	Development application
Land – tree removal or pruning not related to development	Clearing of prescribed native vegetation not subject to Biodiversity Offset Scheme (BOS)	Tree work permit application
Other Land – removal or pruning of a tree listed on the Significant Tree and Vegetation Register	Minor pruning of a tree listed on the Significant Tree and Vegetation Register	Tree work permit application
	Removal or major pruning of a tree listed on the Significant Tree or Vegetation Register	Development Application
Other Land – tree removal and pruning associated with development	Work to any prescribed tree for which development consent is required (ie. trees which are not covered for pruning or removal under the provisions of State Environmental	Development application

	Planning Policy (Exempt and Complying Development Codes) 2008).	
Other Land – work within the Tree Protection Zone of a prescribed tree and/or within 3 metres of a tree located on other land (adjoining property).	Work within 3 metres of any prescribed tree, including construction (driveways, concrete slabs, retaining walls), and earthworks (alteration to soil levels, embankments, trenching) or work within 3 metres of a tree located on an adjoining property	Tree work permit application
Work that is contrary to a development consent	Work, including pruning, removal or excavation within the Tree Protection Zone, to any prescribed tree that is required to be retained and protected under a development consent.	Section 4.55 application

Table 5.3 Pathways for tree works

5.3.6 Tree Work Permit applications

Council encourages the retention of appropriate, existing trees and vegetation to maintain and increase urban tree canopy cover and to reduce the urban heat island effect, improve liveability, sustainability and resilience.

An application for a permit to remove, prune or excavate near (within 3m) trees is to be made and accompanied by a fee.

Where a permit to remove a prescribed tree is sought, the appropriate Arboricultural Report is to be submitted with the application and must provide sufficient justification for tree works. Residents making tree applications should ensure that all relevant material and documentation that they wish to be considered as part of the application is included at the time of lodgement.

In assessing an application to remove, prune or excavate near a tree, Council will consider, but is not limited to, the following factors:

(a) the immediately evident health and structure of a tree

(b) environmental, cultural and amenity value of the tree

(c) the likely effect of the proposed work on the health and structural integrity of the tree

(d) whether the tree shows poor form, shape and/or vigour typical of the species

(e) its location within the context of the property, its topography and buildings

(f) whether there are other viable management methods to alleviate the issues as stated on the application

(g) whether there are other viable alternatives to open excavation available. This may include use of alternative construction techniques, e.g. directional boring, or relocation of sub-surface services

(h) whether the tree is located in a habitat corridor and/or provides habitat or fauna canopy connectivity

(i) the evaluation and recommendations of an Arboricultural Report

(j) the occurrence (or lack of) other vegetation nearby

(k) conservation significance/health/longevity of the vegetation

(l) imminent risk to human life or property

(m) the likelihood of a viable and sustainable replacement planting being able to be installed on the site.

Refer to our Tree Management Policy and Standards for report requirements.

5.3.7 Non-justifiable reasons to remove a tree

The following issues typically do not warrant removal/pruning of prescribed trees:

(a) the tree is shedding leaves fruit, bark, cones, small branches or deadwood

(b) the tree is causing minor damage to structures such as footpaths, driveways and small (<900mm) retaining walls

(c) the tree is causing blockage of pipes unless tree removal is the only viable option to access for pipe for replacement

(d) the tree is blocking views

(e) the tree is blocking solar panels unless the panels predated the planting of the tree

(f) the tree is causing shading or overshadowing of a building

(g) the tree is habitat for wildlife.

Where tree removals are approved, replacement plantings, with appropriate mature dimensions for the tree being provided, may be required as per the conditions of the tree work permit for the application.

Council may specify the mature size of a replacement tree, indicate a particular tree species or leave selection up to the applicant. Native tree species are preferred however, weed species (as defined in the *Biosecurity Act 2015*), palms and tree species listed in **Appendix 2 – Exempt trees species and tree works** are not acceptable replacement tree species.

Where it is determined by Council that a tree cannot be replaced in either the same location or anywhere within the property, a financial contribution will be required to support public tree planting and increase the tree canopy throughout Blacktown City. Offset fees are listed within our Goods and Services Pricing Schedule.

(i) Development application approvals

New development must retain as many mature trees as possible to protect the existing canopy cover and provide for more liveable environments for residents.

At the concept and design stage the layout and siting of a development must consider the location of existing trees and vegetation and make every effort to protect them. Where a development application proposes removal of trees and/or vegetation, justification must be provided.

The siting and design of any new development, including any sub-surface services, is to consider:

(a) the effect of that development on the landscape or scenic quality of the locality

(b) whether any trees or other vegetation on the land could be preserved

(c) the proposed location of any new trees to be planted to ensure they are viable and sustainable and provide long-term canopy cover in the area

(d) where trees are removed from a site for development, the proposed landscape plan must provide replacement plantings that will, at maturity, provide an equivalent area of canopy cover to that which was removed. Where this is not viable or sustainable, Council may require payment of a fee to support public tree planting. Offset fees are contained within our Goods and Services Pricing Schedule

(e) any tree species, proposed for planting within a landscape, must be assessed to ensure it is compatible with local environmental conditions and the desired landscape character, and

(f) the provision of deep soil zones for trees to be retained as well as trees to be planted. Deep soil areas are, at a minimum, to comply with those published by the New South Wales Department of Planning, Housing and Infrastructure and Environment or Council's specifications.

Where trees and/or vegetation are on the Register of Significant Trees and Vegetation any proposed development must aim to integrate the tree with the built form and promote its environmental values.

Where a development application proposes the removal of a Community Asset (Street Tree), if approved, Council will specify the number and species of any replacement planting required. Payment of a Tree Bond, in accordance with the Goods and Services Pricing Schedule, will be required. Tree Protection Measures for Community Asset (Street Trees) will also be subject to payment of the Tree Bond.

All efforts must be made to preserve hollow bearing trees, as they provide habitat for a range of native fauna. Many native species of animals and birds are dependent on hollows for breeding and/or protection from predators. As naturally occurring hollows in native hardwood trees sometimes take over a century to form, they are critical to biodiversity in the area.

Further, information in regard to trees located on development sites can be found in Councils Tree Management Standards.

6 Roads

6.1 Blacktown road network

Blacktown City has an extensive network of roads which is designed to allow the safe and convenient movement of people and goods across and throughout the municipality.

The existing classification of roads in Blacktown City is based on a formal road hierarchy as shown in Figure 5 of Council's Integrated Transport Management Plan (Road Hierarchy Map).

Council's Road Hierarchy Map uses the following classifications:

(a) Arterial roads
(b) Sub-arterial roads
(c) Collector roads
(d) Local roads.

These classifications relate to the main function of a road and the extent to which it serves the road network's 2 basic purposes, being the movement of traffic and access to property. A road's physical characteristics and traffic volume will reflect its function and role in the network.

The Blacktown LEP 2015 Land Zoning maps show the location and zoning of all existing roads within the Blacktown Local Government Area.

The DCP map also shows the location of existing roads as well as the preferred location of future minor roads and pedestrian pathways.

6.1.1 Arterial roads

Roads coloured yellow and zoned SP2 Infrastructure (Classified Road) on the Blacktown LEP 2015 map are the major arterial roads which carry the majority of inter-regional traffic through the City of Blacktown. These include both existing arterial roads, such as the Great Western Highway, and future arterial roads. As the major function of arterial roads is to carry through traffic, vehicular access from adjacent land is denied to ensure both the efficiency of the road and the safety of road users (refer to Clause 7.9 of Blacktown LEP 2015). The State Government is responsible for the acquisition and construction of arterial roads.

6.1.2 Sub-arterial roads

Roads coloured yellow and zoned SP2 Infrastructure (Local Road) on the Blacktown LEP 2015 map are existing and proposed sub-arterial roads which will carry regional traffic as well as local traffic. These include both existing sub-arterial roads, such as Reservoir Road, and future sub-arterial roads. Access from private properties is generally denied to these roads (except in special circumstances) for reasons of traffic safety and to maintain the capacity and efficiency of the road system (refer Clause 7.9 of Blacktown LEP 2015). Council is responsible for the acquisition and construction of sub-arterial roads. The cost of some of these roads has been funded from contributions levied on new development. These roads are usually used for bus routes.

6.1.3 Collector roads

Collector roads will carry local traffic through the residential and industrial precincts to the sub-arterial roads. These roads are likely to be used for bus routes.

The location and spacing of the collector roads are related to their intended function. Collector roads should be constructed 'generally in accordance' with the location shown on the LEP map.

The LEP also provides for road widening for certain existing roads, as these existing roads will in the future perform the function of collector roads.

The construction or reconstruction to Council's standards and the dedication of collector roads is the responsibility of each developer with direct frontage to such roads.

6.1.4 Subdivisional roads

The DCP map shows proposed subdivisional roads in addition to those shown on the LEP map. The location of any subdivisional road is a preferred location, except where the road is also identified as a cycle route and/or drainage flowpath or is a critical element in Council's urban design philosophy. In such instance the location of the road is fixed, unless an alternative that is satisfactory to Council can be established. The function of the subdivisional roads, which may include minor loop roads and culs-de-sac, is to provide access to all future allotments. The construction and dedication of subdivisional roads is the responsibility of the developer.

6.1.5 Culs-de-sac

A cul-de-sac is a special type of subdivisional road, which is essentially a 'dead-end' street with only one entry / exit point. Culs-de-sac are permitted to have a narrower road width than a standard subdivisional road, provided that they serve no more than 30 dwellings / dwelling units. The narrower road width is considered sufficient to allow vehicles to access such a cul-de-sac in a convenient manner, whilst still providing a safe, low vehicle speed environment. This is consistent with the place of the cul-de-sac in the broader road hierarchy.

Council will not accept requests for standard (i.e. non dead-end) subdivisional roads to have the same width as a cul-de-sac on the basis that 30 or fewer dwellings / dwelling units will access the street from the opposite direction and thus operate in the same way as a 30 lot or less cul-de-sac. Such a justification is unsatisfactory for the reason that it relies entirely on the driver behaviour of future residents, which cannot be guaranteed. In addition, no residue or super lots are to be positioned at the end of a cul-de-sac.

6.1.6 Access streets

Roads shown by the symbol --ACC-- on the DCP map are access streets. Access streets provide local residential access to a very small number of dwellings and serve a shared vehicular-pedestrian-cyclist use. The shorter road length and narrower road width associated with access streets is intended to encourage a safe, low vehicle speed environment in which the residential function is dominant. Access streets function at the lowest level of the road hierarchy.

The 2 types of access streets that are permitted by Council are intended to be used as follows:

(a) Access streets with development on one side (with a minimum road reserve of 10 metres) are to be applied along drainage or open space reserves or along access-denied roads (i.e. arterial and some sub-arterial roads), with the intent of:

  (i) being no greater than 5 allotments or 80 metres in length

  (ii) contributing to more pleasant streetscapes and recreation areas by preventing developments from directly fronting or backing onto major roads or onto reserves

  (iii) encouraging passive surveillance of public areas used by pedestrians

(b) Access streets with development on both sides (with a minimum road reserve of 12.5 metres) are to be applied where the street will serve as a short link (no greater than 3 allotments or approximately 50 metres in length) between 2 culs-de-sac.

The construction and dedication of access streets is the responsibility of the developer. Council encourages the use of access streets in undeveloped sites which adjoin access denied roads, open space areas and drainage reserves. Access streets offer the opportunity for more pleasant streetscapes and recreation areas, thus avoiding subdivisions with rear fences of properties facing major roads, parks and drainage reserves. In addition, access streets encourage passive surveillance of public areas used by pedestrians.

6.1.7 Pedestrian pathways

Pedestrian pathways can be an important part of the transport system. Council has sought to provide a pedestrian system linking destinations such as open space, schools, shops and bus stops, in order to minimise conflicts with major traffic routes and minimise walking distances.

Pathways shown on the DCP map may also perform a drainage function and provide access for service authorities.

The construction and dedication of pedestrian pathways is the responsibility of the developer. When designing pedestrian pathways, the following design criteria should be adhered to:

(a) pathways should be a minimum of 4 metres wide

(b) all pathways should be constructed of concrete or similar product that is easily maintained. Construction shall be to Council's standards

(c) the maximum length of any single pathway is to be the equivalent of the depth of 2 house blocks

(d) pathways are to be straight and will enable pedestrians to see clearly from one end of the pathway to the other

(e) the height of fencing adjoining pathways is permitted up to 1.8 metres high, however the height of fencing is optional and can be reduced to improve surveillance of the pathway

(f) pathways are to be illuminated at both ends and, in the middle, using a combination of high and low lighting.

Pathways as proposed on the DCP map are not mandatory. Council would welcome alternatives for consideration as part of individual applications.

6.2 Road hierarchy and required road widths

The collective list of the various types of road - from arterial to subdivisional roads, access streets and pathways - is referred to as the road hierarchy. Council classifies a road on the basis of existing or potential traffic volumes.

All road types that are identified to be within Bush Fire Prone Land are to comply with the requirements of *Planning for Bush Fire Protection 2006* published by the NSW Rural Fire Service and NSW Department of Planning and Environment.

In Table 6.1 Council's requirements for road widths (carriageway and footpath) and traffic lanes are listed for each type of road. These standards are based on Blacktown Council's *Engineering Guide for Development 2005* which is available at Council and should be utilised for more information.

Where a road is designated as part of a cycleway, Council reserves the right to require that the road has a larger carriageway width than specified within Table 6.1.

For an existing public road designated as a future collector road, the road reserve width may be retained. However, the existing carriageway may be narrowed to 11m.

Road type	Carriageway (in metres)	Footway each side (in metres)	Total road reserve (in metres)	Number of lanes
General				
Sub-arterial roads within SP2 zone	12.8 Separated by 4m median	4.25	Generally 25	4 travel lanes and no parking
Pathways			Minimum of 4	N/A - pedestrian and/or cycle movement only
Industrial				
Collector Within new industrial areas	15.5	3.75	23	2 travel lanes and 2 parking lanes
Other industrial	13.5	3.5	20.5	2 travel lanes and 2 parking lanes
Residential				
Collector Loop roads serving activity centres such as large open space areas, shops, etc and low-speed local bus routes	11	3.5	18	2 travel lanes and 2 parking lanes
Local street Minor loop roads and culs-de-sac serving more than 30 allotments including corner lots	9	3.5	16	2 travel lanes and 2 parking lanes
Cul-de-sac Serving a maximum of 30 dwellings / dwelling units (not lots), with no residues, superlots or medium density sites at the end of a cul-de-sac	7.5	3.5	14.5	2 travel lanes, parking permitted
Access street Development on one side only	5.5 only for short lengths (maximum of 5 dwellings or 80m) to link culs-de-sac or local streets	3.5 on residential side only 1 on opposite side	10	1 travel lane with parking permitted
Access street Development on both sides	5.5 only for short lengths (maximum of 3 dwellings or 50m) to link culs-de-sac or local streets	3.5	12.5	1 travel lane with parking permitted

Table 6.1 Recommended road hierarchy and road widths

6.3 Cul-de-sac heads and intersections

6.3.1 Residential culs-de-sac

Turning heads of culs-de-sac in residential areas should have a minimum radius of road reserve of 12m and a carriageway radius of 8.5m.

6.3.2 Industrial culs-de-sac

Turning heads of culs-de-sac in industrial areas should have a minimum radius of road reserve of 17m and a carriageway radius of 13.5m.

6.3.3 Intersections

Intersections must be provided with splay corners at the road reserve boundary in accordance with Council standard policy (5m x 5m (residential) or 8m x 8m (industrial)) and kerb lines of 8.5m radius or as required by Council in certain circumstances to allow for the provision of roundabouts.

6.3.4 Access streets

Access streets may be designed to service developments on either one side or both sides of the street. Access streets shall have a minimum carriageway width of 5.5 metres and incorporate slow points such as bends and different pavement material to limit the travel speed of vehicles. The entry and exit points of an access street shall incorporate threshold designs indicating to drivers that they are entering a low speed environment. In addition, intermediate thresholds are to be provided when the length of access streets exceeds approximately 100 metres. Where access streets are provided, concrete path paving may not be required.

6.4 Amendments to proposed road locations

6.4.1 Sub-arterial roads and major collector roads

The sub-arterial road system is fixed by Blacktown LEP 2015. In general, Council will only permit very minor changes to the location of these roads arising from detailed design considerations.

Applicants who wish to change the location of proposed roads should discuss such matters with Council at an early stage before lodging a Development Application.

6.4.2 Minor residential roads

The subdivisional roads within the residential areas shown on the DCP maps have been designed to cater principally for the subdivision of land to create allotments for the erection of detached dwelling houses.

However Blacktown LEP 2015 allows for a range of housing types and densities in the residential zones and this may result in a variety of allotment sizes. Accordingly, Council recognises that there may be a need for changes to the proposed road pattern and will consider changes proposed by applicants on their merits.

6.4.3 Minor industrial roads

The subdivisional roads within the industrial areas shown on the DCP maps have been designed principally for the subdivision of land to create allotments generally of a depth in excess of 100m. However, Blacktown LEP 2015 enables the creation of allotments of a greater or lesser depth and, accordingly, Council recognises that there may be a need for changes to the proposed road pattern and will consider changes proposed by applicants on their merits.

6.4.4 Consideration of amendments

To approve a change in the location of the roads proposed by Blacktown DCP 2015, Council will need to be satisfied that:

(a) The proposed new roads provide for a safe vehicular movement system

(b) Intersections are safely designed

(c) Other property owners are not unduly disadvantaged by the change

(d) The requirements of servicing authorities are met

(e) Drainage paths are adequately maintained.

6.4.5 Advice to adjoining owners

For changes to the proposed road system which Council considers minor, Council will write to affected property owners and consider any comments of those persons before determining the application. However, applicants wishing to amend the proposed road pattern are advised to liaise with affected adjoining owners prior to the submission of the Development Application. By obtaining the prior agreement of adjoining owners to proposed road pattern changes, delays in the determination of the application may be reduced.

For changes to the proposed road system which Council considers major, Council may require a formal application for amendment to the DCP map before determining the application.

6.5 Land adjoining arterial and sub-arterial roads

6.5.1 Limited access to arterial and sub-arterial roads

Arterial and sub-arterial roads are zoned SP2 Infrastructure (Classified Road) and SP2 (Local Road) respectively on the Blacktown LEP zoning maps.

These arterial and sub-arterial roads carry high volumes of traffic. To improve traffic safety and to avoid the need for a very wide road reservation, vehicular access to such a road may only be made by way of a local road. As stipulated in Clause 7.9 of Blacktown LEP 2015, access from individual properties to such a road is denied. Council will require brick or masonry fencing to a minimum height of 1.8m as a physical barrier to access where a service road has not been provided.

6.5.2 Legal prevention of direct vehicular access

Persons creating allotments adjoining designated roads are required to create restrictions on the use of land under Section 88B of the *Conveyancing Act 1919* to legally deny direct vehicular access to allotments from the designated road.

6.5.3 Temporary access to designated roads

Internal subdivision roads will need to be opened before development of properties with frontage to a designated road may take place. In the early years of development some applicants may not be able to develop their land as subdivisional roads on adjoining properties may not have been constructed at that time.

To overcome this problem, Blacktown LEP 2015 allows Council to grant temporary access to designated roads. Council may allow temporary access where:

(a) the development complies with all other development standards

(b) subdivisional roads generally conform with the road pattern shown on the DCP map

(c) council is satisfied that the carrying out of the development will not compromise traffic safety.

Where Council grants such consent, the temporary access must be constructed to Council's standards, and conditions will be imposed that access to the designated road by way of the temporary access shall cease when alternative access becomes available.

6.5.4 Existing rights of access

Council discourages access to designated roads from private driveways. When an application is lodged to develop a property with existing access to a designated road, Council will encourage the access to be changed. Where possible, access to properties should be via local roads, or the like, rather than designated roads.

Council may also require the removal of existing driveways, gates or any other object that identifies an individual property from the arterial or sub-arterial road.

7 Car parking

Council's car parking requirements are largely based on the standards applied by the Roads and Maritime Services in its publication *Policies Guidelines and Procedures for Traffic Generating Developments.*

7.1 Objectives

Recognising the varying availability of public transport within Blacktown, the aim of the car parking provisions of Blacktown DCP 2015 is to provide a comprehensive guide for the provision of parking for new development in order to:

(a) Ensure adequate traffic safety and management

(b) Ensure an adequate environmental quality of parking areas (both safety and amenity)

(c) Provide parking areas that are convenient and sufficient for the use of employees and visitors generated by new developments.

7.2 General principles

Council will take the following factors into account in determining car parking provision for a particular development:

(a) The size and type of the development and its traffic generation

(b) The availability and accessibility of other public parking

(c) Traffic volumes on the street network, including expected future traffic volumes relating to the City's road hierarchy

(d) Hours of operation and any other specific characteristics of the development proposal.

7.3 Specific land use requirements

Car parking is to be provided for specific types of development in accordance with the standards shown in Table 6.1. Parking is to be provided off-street and is to be readily identifiable and accessible from public roads.

The parking requirements in Table 7.1 apply to development in general. For activities not specifically mentioned, car parking requirements will be determined on the merits of the application. Additionally, you should check the relevant parts of Blacktown DCP 2015 to ensure that there are no site specific parking requirements that apply to your site.

For developments incorporating a number of related land uses, a separate calculation will be made for each component. Parking needs will be calculated based on the peak demand time. Thus, where peak demand is staggered, Council may permit a reduction in the total number of spaces otherwise required.

In respect of existing premises being remodelled:

(a) If the remodelling does not result in increased floor space and the use of the building is not significantly changed, then additional parking provision will not be required

(b) If the remodelling results in an increased floor area, then additional parking will be required in respect of the increased area

(c) If the use of the building is changed, this will be taken into account in assessing the parking required as well as any increase in floor space.

Specific land use	Car parking requirement
Attached dwelling development	Where a dwelling has a direct public road frontage 1 space per 1 or 2 bedroom dwelling behind the building setback 2 spaces per 3 or more bedroom dwelling behind the building setback Where a dwelling does not have a direct public road frontage As per above plus 1 space per 2.5 dwellings (or part thereof) for visitor parking
Bulky goods premises	1 space per 45sq.m GFA
Child care centre	1 space per employee, plus 1 space per 6 children or part thereof for parents and visitors
Community facility and place of public worship	1 space per 4 seats or 1 space per 10sq.m of seating area, whichever is the greater
Dual occupancy and semi-detached dwellings	Residential parking 1 space per 1 or 2 bedroom dwelling 2 spaces per 3 or more bedroom dwelling Plus 1 space per battle-axe lot for visitor parking, but only for dual occupancy
Dwelling house	2 spaces per dwelling
Educational establishment	For primary and secondary schools 1 space per staff member Plus 1 space per 100 students Plus 1 space for delivery vehicles, drop-off area and buses as appropriate For senior high schools only In addition to the above, 1 space per 5 students in Year 12 For tertiary educational establishments 1 space per 5 seats or 1 space per 10sq.m floor area, whichever is the greater

Specific land use	Car parking requirement
Entertainment facility	1 space per 8 seats or 1 space per 15sq.m GFA, whichever is greater
Function centre	Land zoned B3 Commercial Core or B4 Mixed Use 1 space per 30sq.m GFA Elsewhere 1 space per 10sq.m of dining area, plus 1 space per 2 employees
Gymnasium	1 space per 25sq.m GFA
Health consulting rooms	2 spaces for each surgery Plus 1 space for each employee **Note:** A minimum of 4 spaces shall be provided for development containing 1 surgery only
Hotel or motel accommodation, serviced apartments and bed and breakfast accommodation	1 space per unit Plus 1 space per 2 employees Plus 1 space per 10sq.m of dining area Plus 1 space per 3 seats of function area
Light industry, general industry, heavy industry and warehouse or distribution centre	1 space per 75sq.m GFA Plus 1 space per 40sq.m GFA for the office component
Medical centre	1 space per staff member, plus additional visitor car parking at a rate of 1 space per 30 sqm
Multi dwelling housing	Residential parking 1 space per 1 or 2 bedroom dwelling 2 spaces per 3 or more bedroom dwelling Visitor parking 1 space per 2.5 dwellings (or part thereof)

Specific land use	Car parking requirement
Office premises	Blacktown CBD Refer to Part D Outside the Blacktown CBD 1 space per 40sq.m GFA
Pub and registered club	Land zoned B3 Commercial Core or B4 Mixed Use Assessed on merit Elsewhere 1 space per 18.5sq.m GFA
Residential flat building	Blacktown CBD Refer to Part D Outside the Blacktown CBD 1 space per 1 or 2 bedroom dwelling 2 spaces per 3 or more bedroom dwelling Plus 1 space per 2.5 dwellings for visitor parking (or part thereof)
Restaurant or café	Land zoned B3 Commercial Core or B4 Mixed Use 1 space per 30sq.m GFA Elsewhere 1 space per 10sq.m of dining area, plus 1 space per 2 employees
Retail premises and business premises	Blacktown CBD Refer to Part D Outside the Blacktown CBD 200sq.m or greater – 1 space per 22sq.m GFA Less than 200sq.m – 1 space per 30sq.m GFA
Service station	6 spaces per work bay Plus 1 space per 20sq.m ancillary retail GFA
Sex services premises	1 space per employee, 1 space per room and 1 space for a manager. Stacked parking is not acceptable

Specific land use	Car parking requirement
Shop top housing	For the residential component, refer to the residential flat building car parking requirements in this table For other components of shop top housing development, car parking requirements are determined by the type of land use and will need to address that specific land use's car parking requirement in this table
Takeaway food and drink premises	12 spaces per 100sq.m GFA. Plus 1 space per 5 seats or 1 space per 10sq.m dining area, whichever is the greater
Tennis centre	3 spaces per court
Vehicle sales or hire premises	1.5 spaces per 200sq.m site area

Table 7.1 Car parking rates

Note:

1. Parking rates for some land uses are not specified as they are regulated by State Environmental Planning Policies (e.g. Boarding Houses and Group Homes under the Affordable Rental Housing SEPP and Seniors Housing under the Housing for Seniors or People with a Disability SEPP).
2. GFA means Gross Floor Area as defined in Blacktown Local Environmental Plan 2015.
3. Car parking requirements for development types not contained in this Table or regulated in other Planning Instruments will be assessed on merit and may require the submission of a traffic study.

7.4 Design

7.4.1 Location of parking area

Within the development site the location of the parking area should have regard to:

(i) The site conditions, such as slope and drainage
(ii) The visual amenity of the development and the adjacent sites
(iii) The proximity of the parking area to any neighbouring residential areas
(iv) The relationship of the building/s to the parking area
(v) The relationship of the parking area to the street.

7.4.2 Access

Car parking areas should be designed so that vehicles can enter and leave the site in a forward direction.

Ingress and egress to or from the site should be located where they will cause the least interference with vehicular and pedestrian movement on public roads. Direct access should not be gained off existing or proposed high volume roads where an alternative access can be provided.

Road access to parking areas will not be permitted in close proximity to traffic signals, intersections or where sight distance is considered inadequate by Council in accordance with *Austroad's Guide to Traffic Management*.

The number of access points to be provided from any site to any one street frontage should be limited to one ingress and one egress.

Parking areas should have a separate entrance and exit where more than 50 spaces are provided or where the development generates a high turnover of traffic, such as a supermarket or a drive-in service facility.

The potential for on-street queuing should be eliminated by the provision of sufficient standing area for vehicles entering the carpark and loading areas.

7.4.3 Maneuvering

All parking bays should be readily accessible. The provision of adequate space for the maneuvering of vehicles, particularly rigid and articulated heavy vehicles, may be necessary depending upon the type of development. The NSW Roads and Maritime Services' standards for car, truck and semi-trailer design turning paths (which are available from Council) should be used to determine the layout of parking areas.

Dead-end parking aisles will generally not be permitted. Consideration will be given to their provision in small parking areas or when reserved for a specific low turnover use (such as for employees) which is signposted in that way.

7.4.4 Bay and aisle dimensions

Minimum bay and aisle dimensions are outlined in the Australian Standards and have been incorporated into Table 7.2 below. For more information refer to the relevant sections within the Australian Standards, AS/NZ 2890.1:2004 and AS/NZ 2890.6:2009 for persons with a disability.

Land use	Bay width (in metres)	Bay length (in metres)	Aisle width (2 way in metres)
Low turnover (such as educational establishments, industrial, employee and commuter parking)	2.5	5.2	7
Medium turnover (such as sports and entertainment facilities, hotels and restaurants)	2.6	5.2	7
High turnover (such as medical centres, shopping centres, department stores and supermarkets)	2.7	5.2	7
Residential	2.8	5.5	7
Disabled parking bays	3.2	5.5	7

Table 7.2 Minimum bay and aisle dimensions

In general, 90-degree angle parking, from both sides of an access aisle, represents the most efficient use of available space. Alternative parking layouts (such as angle parking) will be considered by Council where circumstances warrant.

Bays should be greater than the minimum dimensions when located adjacent to an obstruction wall, fence or the like.

The use of stack parking is not favoured and may only be permitted in small quantities under special circumstances, such as parking for employees or residential developments where 2 spaces are provided for 1 housing unit.

7.4.5 Service vehicle areas

Service vehicle areas should be provided off-street with convenient access. In larger developments, service areas should operate independently of other parking areas. This includes access for inspections and cleaning of integrated water cycle management and water sensitive urban design measures incorporated into roadways.

7.4.6 Pedestrians

Parking areas should be designed to minimise the potential for vehicular / pedestrian conflict. Pedestrian pathway connections between car parking areas and buildings are desirable.

7.4.7 Bicycle parking and facilities

Applicants are encouraged to incorporate, in the design of their buildings, safe storage/parking areas for bicycles, with adequate shower and change facilities provided for staff (where appropriate).

7.4.8 Parking for persons with a disability

In all parking areas, Council wishes to encourage the provision of parking spaces for the disabled, located to allow convenient and safe access within sites. All parking areas must provide for disabled drivers in accordance with the provisions of the *Building Code of Australia*. Such spaces shall be clearly marked and signposted for this purpose.

In any parking area, Council may require additional parking spaces for the disabled where it considers that the proposed land use warrants extra provision.

7.4.9 Landscaping

Parking areas should be landscaped to provide shade, to improve the visual amenity of large, all-weather surfaces and to provide a buffer to neighbouring properties, and may incorporate integrated water cycle management measures.

Landscaping should be an integral part of the parking layout and can be used to separate conflicting traffic movements (vehicular and pedestrian). Recreational or leisure areas, such as employee lunch areas, can be incorporated within the landscaping design.

Landscaping should be used throughout the carpark and on the perimeter. Care should be taken, in the selection of species, not to block signs and to allow ingress and egress points to be clearly visible. Shade trees within parking areas between rows of cars should be protected from vehicular movement and encroachment (e.g. by the use of wheel stops).

Trees should be planted to achieve 50% shading of the carpark at 10-year maturity. Appendix 1 provides a list of the tree species recommended by Council, with native species favoured.

A landscaping plan will be required to be submitted with the Development Application, unless otherwise specified by Council. Such plans must show dimensions, levels, existing vegetation and the position, type and characteristics of all proposed planting.

Where car parking areas utilised at night are located within or adjacent to residential areas, consideration should be given to the location of lighting and driveways, and noise prevention measures (such as fencing and/or mounding), to avoid the loss of amenity of these residential areas.

7.5 Materials

All internal roads and car parking areas must be constructed of hard-standing, all-weather material which is maintained to the satisfaction of Council at all times.

Wheel stops should be provided to protect areas from vehicle encroachment, particularly walls, landscaping and pedestrian areas.

7.6 Signs

Parking areas should be well signposted, to indicate the availability of off-street parking, with entry and exit points clearly visible from both the street and the site.

Pavement arrows should clearly indicate the direction of traffic circulation, and parking bays should be clearly delineated.

Parking spaces for specific uses (e.g. disabled, employees or visitors) should be clearly signposted. Details of proposed signposting and marking should be submitted with the Development Application.

Where car parking is subject to frequent night-time use by the public, signposting and line marking shall utilise reflective background materials or paint to the standards of the NSW Roads and Maritime Services.

7.7 Monetary contributions

In most cases Council will require on-site parking to be provided by the applicant. However, in certain circumstances, such as where on-site parking presents undesirable traffic problems, is impractical because of site constraints or where it affects the overall car parking strategy for a retail or commercial centre, Council may require a cash contribution in lieu of the provision of on-site parking

Such cases would be considered on their individual merits, depending upon the size of the development, proximity to existing or planned public car parking areas and the accessibility of such areas, the demand for parking in the locality generally and the general flow of traffic in the area.

Car parking contributions are reviewed regularly to consider changes in the estimated land and construction costs of car parking areas provided by Council.

8 Services

8.1 Water

Development consents granted by Council for most forms of development will include a condition requiring the applicant to provide evidence that arrangements satisfactory to Sydney Water have been made by the applicant for water supply to the development.

This evidence consists of a Certificate under Section 73 of the *Sydney Water Act 1994*, stating that the applicant has paid a contribution towards water services or has made other suitable arrangements.

Other specific requirements of Council for various types of development are discussed within the Part of Blacktown DCP 2015 that is relevant to the particular form of development.

8.2 Sewerage

Development consents granted by Council for most forms of development, other than for development in the RU4 Primary Production Small Lots Zone, will include a condition requiring the applicant to provide evidence that arrangements satisfactory to Sydney Water have been made by the applicant for sewer connection to the development.

This evidence consists of a Certificate under Section 73 of the *Sydney Water Act 1994*, stating that the applicant has paid a contribution towards the required services or has made other suitable arrangements.

In the case of land within the RU4 Primary Production Small Lots Zone, Council will require the applicant to make satisfactory arrangements for the provision of on-site effluent treatment and disposal.

Other specific requirements of Council for various types of development are discussed within the Part of Blacktown DCP 2015 that is relevant to the particular form of development.

8.3 Electricity

Applicants for development are required to make satisfactory arrangements with an electricity provider for:

(a) The provision of low voltage electricity to the site

(b) The installation of street lamp brackets and fittings.

8.4 Telephony

Applicants for development are encouraged to make satisfactory arrangements with the appropriate authority for the provision of telephone and internet services.

8.5 Gas

Natural gas is available to many parts of Blacktown. Applicants are advised to discuss the provision of gas supply with a local gas supplier.

8.6 Postal services

Applicants are advised to discuss with Australia Post the provision of postal services to their developments.

9 Special considerations

9.1 Solar access

New development should retain reasonable levels of solar access to neighbouring properties and the public domain.

In relation to the erection of buildings, Council will be concerned with the shadows cast by that development on land in the vicinity and may require the submission of shadow diagrams to assess the effect of the development on nearby land and the development proposal itself.

Council's specific solar access requirements for residential and commercial development proposals are discussed within Parts C and D respectively.

9.2 Downstream owner's consent

Adequate provision must be made for the collection and disposal of surface and roof water run-off. All stormwater shall be either reticulated to the street gutter or piped to a suitable location as approved by Council.

Where a site proposed for an increase in density (e.g. dual occupancy, attached dwellings, multi dwelling housing) falls away from the fronting street, the Development Application must include documentation establishing a suitable drainage solution including inter- allotment drainage (and proposed easement) through downstream properties, and written permission from downstream property owners where applicable. Section 88K of the *Conveyancing Act 1919* provides suitable mechanisms to negotiate the creation of easements where an amicable arrangement cannot be made (proceedings instigated under Section 88K may be taken into consideration when determining a Development Application, in which case a Deferred Commencement Consent may be considered at the discretion of Council).

Council will not support the placement of fill on land to channel stormwater drainage back to the street, nor the use of a charged system to achieve the same effect.

9.3 Traffic generating development

Applications for development which may generate substantial traffic will be dealt with by Council in accordance with the provisions of the *Environmental Planning and Assessment Act 1979*.

9.4 Crime prevention through environmental design

9.4.1 Introduction

Crime prevention through environmental design (CPTED) is a crime prevention strategy that focuses on the planning, design and structure of cities and neighbourhoods. It reduces opportunities for crime through the use of design and place management principles.

Council has a responsibility to ensure that development provides safety and security to users and the community. In order to create a safe and defensible environment, Council will have particular regard to design aspects of all forms of development when assessing applications.

Major Development Applications may require the submission of a Crime Safety / Prevention Audit prior to the determination of the application. This Crime Safety / Prevention Audit may also be referred to the NSW Police Service for detailed review and assessment.

The NSW Police Service has produced a document titled *Safer by Design - A Practical Guide*

to Crime Prevention Through Environmental Design. The guidelines contain two parts. Part A details the need for a formal crime risk assessment (Safer By Design Evaluation) to be done in conjunction with trained Police, and Part B outlines basic crime prevention through environmental design (CPTED) principles and strategies that can be used by consent authorities to justify proposals to minimise risk. This document should be read in conjunction with Blacktown DCP 2015.

9.4.2 Siting and design of buildings

Buildings should be sited in a manner which encourages opportunities for passive surveillance. There are a number of ways in which this can be achieved, including the siting of windows and balconies onto public areas to monitor pedestrian and vehicle movements.

Additionally, a neighbourhood can benefit from mixed-use development whereby 24-hour surveillance can be encouraged. That is, office and retail uses are the predominant activity during working hours when many of the residential premises are vacated and vice versa.

9.4.3 Subdivision design

Subdivisions should be designed in such a manner that allows for natural surveillance from private areas into public and recreational spaces (e.g. parks and playgrounds).

Public thoroughfares / pathways should be visible from dwellings and roadways throughout a subdivision to promote natural surveillance.

9.4.4 Landscaping

Applicants should pay special attention to their selection of plant species so that factors such as shape, height, foliage and canopy spread do not interfere with the natural monitoring of public spaces.

9.4.5 Lighting

Lighting plays an important role in creating a safe night-time environment for pedestrians and vehicles. Lighting should be easily maintained, vandal resistant and have particular regard to the specific environment in which it serves. Special attention should be given to building entries, common areas and locations likely to attract night use by pedestrians (e.g. pathways, vehicle parking areas, public phones).

9.4.6 Access control and territorial reinforcement

Spaces should be clearly defined as private, semi-private or public, by the use of fencing, vegetation, landscaping, changes in ground level, traffic calming, paving type and signage.

9.5 Retaining walls and ground reshaping

Requirements relating to retaining walls and ground reshaping aim to minimise excessive alteration of the natural ground level in a manner that will affect or compromise the structural stability, integrity and amenity of adjacent development, structure or service conduit on the subject or adjoining land. In addition, soil erosion should be minimised, opportunities for reasonable recreational use of the land is to be maximised and the cost burden for retaining works on owners is to be reduced.

Various SEPPs may provide for retaining walls and ground reshaping as exempt or complying development, whose criteria should be carefully considered prior to any works being undertaken.

Development Application plans must include the proposed location of any retaining walls, which are to comply with the following controls:

Standard	Control
Maximum depth of any cut	900mm
Maximum height of any fill	600mm
Terracing (horizontal separation) between retaining walls	Minimum of 1.2m

Table 9.1 Maximum cut and fill

Where any reshaped ground is not supported by a structurally adequate retaining wall, the ground shall be battered / sloped at a maximum 30% to the horizontal (1:3.3) and effectively stabilised with turf or other landscaping.

All retaining walls are to comply with relevant Australian Standards, applicable Engineering Design Codes or any manufacturer's specifications.

All retaining walls associated with subdivision works shall be of masonry and, if terraced, individual walls should not exceed 900mm in height with the horizontal separation equal to the greatest wall height.

Care should be taken to ensure that any reshaped ground does not undermine or fill around any tree.

10. Development on flood prone land

10.1 General

The information contained within this section is based on the NSW Government's Flood Prone Land Policy.

The information provided below is used by Council as a guide only and compliance with these development standards does not automatically ensure approval. Each application will be considered on its individual merits.

10.2 Aims and objectives

Council's primary aim in relation to the development of flood prone land is to reduce the impact of flooding and flood liability on individual owners and occupiers and to reduce private and public losses resulting from flooding. The aims are as follows:

(a) increase public awareness of the hazard and extent of flooding on flood prone land

(b) inform the community of Council's controls and policy for the use and development of flood prone land

(c) encourage development and construction which is compatible with the identified flood risk to ensure the safety of the development itself

(d) adopt a merit-based approach to all Development Applications, which considers social, economic and ecological factors, and

(e) deal equitably and consistently with applications for development on flood prone land.

To achieve this, the objectives of this section are as follows:

(a) define flood risk precincts to categorise flooding by risk (Section 10.4.2)

(b) categorise land use by its vulnerability to flooding (Section 10.4.3.1)

(c) outline all flood related planning controls (Section 10.4.3.2)

(d) advise the flood related planning controls that apply to a development given its risk of flooding and vulnerability to flooding (Section 10.4.3.3).

The above aim and objectives should be read in conjunction with the objectives of *Blacktown Local Environmental Plan 2015* and the relevant NSW Government Policies.

10.3 Definitions

Definitions or terms used within this Part are provided below.

Annual exceedance probability (AEP) means the chance of a flood of a given or larger size occurring in any one year, usually expressed as a percentage. For example, a 1% AEP flood has a 1% or 1 in 100 chance of being reached or exceeded in any given year. Annual Recurrence Interval (ARI) is the historical way of describing a flood event.

Australian Height Datum (AHD) means the official national vertical datum for Australia which is a plane of level corresponding approximately to mean sea level.

Defined Flood Event (DFE) means the flood event selected as a general standard for the management of flooding to development. The 1% AEP flood has been selected as the DFE in Blacktown.

Flood means a natural phenomenon where water inundates land that is usually dry, generally due to weather systems that generate a high amount of rainfall. Flooding can be due to water flowing within, out of, or towards a waterway. Types of flooding include riverine, overland flow, groundwater and coastal flooding.

Flood liable land is equivalent to Flood Prone Land

Flood maps means maps held by Council which indicate predicted flood levels, flood contours and other relevant information.

Flood Planning Area (FPA) means the area of land below the FPL.

Flood Planning Level (FPL) means the combination of the flood level from the DFE and freeboard selected for flood risk management purposes.

Flood prone land means land susceptible to flooding by the Probable Maximum Flood event. Flood prone land is also known as the floodplain, flood liable land and flood affected land.

Freeboard means a factor of safety typically used in relation to the setting of minimum floor levels or levee crest levels.

Future flood risk means the risk future development and its users are exposed to as a result of its location on the floodplain. This includes future changes to the catchment, floodplain and climate to allow for an understanding of the future flood behaviour with changed conditions.

Flood Impact and Risk Assessment (FIRA) A study to assess flood behaviour, constraints and risk, understand offsite flood impacts on property and the community resulting from the development, and flood risk to the development and its users.

Floodway means areas of the floodplain which generally convey a significant discharge of water during floods. They often align with naturally defined channels. These areas are those in which human life could be at risk from the passage of flood waters. Floodways are areas that, even if only partially blocked, would cause a significant redistribution of flood flow, or a significant increase in flood levels.

Habitable floor includes any portion of a building designed, constructed, adapted or used for human habitation whether forming part of a dwelling or any other building and

includes rumpus rooms and the like.

Merit-based approach weighs social, economic, ecological and cultural impacts of land-use options for different flood prone areas together with flood damage, hazard and behaviour implications, and environmental protection and wellbeing of the state's rivers and floodplains.

Overland flow flooding means inundation by local run-off on its way to a waterway. The capacity of stormwater systems is exceeded and stormwater then flows above ground following the low areas of the landscape. This is also known as local overland, flash or pluvial flooding.

Probable Maximum Flood (PMF) means the largest flood that could conceivably occur at a particular location, usually estimated from probable maximum precipitation (PMP), and where applicable, snow melt, coupled with the worst flood-producing catchment conditions.

Probable maximum precipitation (PMP) means the greatest depth of precipitation for a given duration meteorologically possible over a given size storm area at a particular location at a particular time of the year, with no allowance made for long-term climatic trends (World Meteorological Organization 1986).

Riverine flooding means creeks and rivers overflowing, breaking their banks and flooding nearby low-lying areas and properties. These flows may be several metres deep in the channels and relatively fast moving. This is also known as mainstream or fluvial flooding.

Survey Plan means a plan prepared by a Registered Surveyor.

Unmapped overland flow means areas that are identified as being affected by flooding which has not yet been investigated and/or listed by Council at that time.

Unobstructed flow means the passage of floodwater is free from impediment or obstruction, such as those caused by structures, temporary blockages, debris and sediment.

10.4 Control of development on flood prone land

10.4.1 Heads of consideration

In determining any application for development on flood prone land, Council will take into consideration those matters listed under Section 4.15 of the *Environmental Planning and Assessment Act 1979* as appropriate. Council shall also take into consideration the following:

(a) whether the proposed building materials are suitable.

(b) whether the buildings are to be sited in the optimum position to avoid flood waters and allow efficient evacuation.

(c) whether proposed structures or the filling of land are likely to affect flood flows.

(d) whether consultation with other authorities is considered necessary.

(e) the NSW Government Flood Risk Management Manual (2023).

In assessing Development Applications, Council can only take into account information that is known to Council at the time of determining such applications.

10.4.2 Flood Risk Precincts

The floodplains and overland flow pathways within Blacktown can be divided into precincts based on different levels of potential flood risk. Unmapped areas that have

not yet been investigated to confirm if they are impacted by riverine flooding or overland flow may still be subject to flood controls even if they are not identified in any on the precincts below. The relevant Flood Risk Precincts (FRP's) for each of the floodplains are outlined below:

10.4.2.1 Riverine High Flood Risk Precinct

Areas of the floodplain which convey a significant discharge of water during floods. These areas often align with naturally defined channels and are equivalent to the floodway during a 1% annual exceedance probability flood.

The high flood risk precinct is where the highest flood damages and greatest potential risk to life would be anticipated from floods.

10.4.2.2 Riverine Medium Flood Risk Precinct

Equivalent to the flood planning area. The freeboard used is 500mm

This area does not include areas that have already been identified as being within the high flood risk precinct.

10.4.2.3 Riverine Low Flood Risk Precinct

This includes all land that is flood affected by riverine flooding in some capacity, up to and including the Probable Maximum Flood, except for areas that have already been identified as being within the high or medium flood risk precincts.

10.4.2.4 Overland Flow High Flood Risk Precinct

Areas of the floodplain which convey a significant discharge of water during floods. These areas often align with naturally defined channels and are equivalent to high hazard areas during a 1% annual exceedance probability flood. High Hazard is equivalent to the floodway where mapping is available or otherwise it is areas of H5-H6 hazard where floodway mapping is not available.

The high flood risk precinct is where the highest flood damages and greatest potential risk to life would be anticipated from floods.

10.4.2.5 Overland Flow Medium Flood Risk Precinct

Equivalent to the flood planning area. The freeboard used is 300mm.

This area does not include areas that have already been identified as being within the high flood risk precinct.

10.4.2.6 Overland Flow Low Flood Risk Precinct

This includes all land that is flood affected by overland flow flooding in some capacity, up to and including the Probable Maximum Flood, except for areas that have already been identified as being within the high or medium flood risk precincts.

10.4.3 Flood Planning Controls

The tables in 10.4.3.1 and 10.4.3.2 are to be read together to determine the relevant flood planning controls for a development.

10.4.3.1 Land use by vulnerability to flooding

Vulnerability of developments and their users to flooding varies between development types and their typical users. For other types of development, such as roads and mining, refer to the respective guidelines for that kind of development. The table below provides an outline of the relative vulnerability of users, buildings and their contents.

Type of use	Examples
Sensitive and hazardous use and facilities	hospitals, telecommunication towers, large power supply stations, emergency services facilities (police, ambulance and fire stations), centre-based child care centres, early education and care facilities, correctional centres, educational establishments, residential care facilities, respite day care centres, seniors housing, group homes, service stations
Subdivision	earthworks
Residential	attached dwellings, boarding houses, dual occupancies, hostels, multi dwelling housing, residential accommodation, semi-detached dwellings, shop top housing
Commercial and industrial	amusement centres, animal boarding or training establishments, artisan food and drink industries, backpackers' accommodation, bed and breakfast accommodation, boat building and repair facilities, commercial premises, car parking facilities, community facilities, crematoria, function centres, garden centres, heavy industrial storage establishments, highway service centres, industrial retail outlets, information and education facility, local distribution premises, marinas, office premises, passenger transport facilities, place of public worship, public administration buildings, recreation facilities (indoor), recreation facilities (major), registered clubs, research stations, service stations, storage premises, vehicle body repair workshops ,vehicle repair stations, warehouse or distribution centres, waste disposal facilities, hardware and building supplies, kiosks, landscaping material supplies, markets, neighbourhood shops, plant nurseries, retail premises, rural supplies, specialised retail premises, take away food and drink premises, timber yards, vehicle sales or hire premises, business premises, funeral homes, goods repair and reuse premises, home businesses, home occupations, home-based child care, restricted premises, roadside stalls, sex services premises (restricted premise), veterinary hospital, wholesale supplies, general industries, heavy industries, home industries (light industry), home occupations (sex services), industrial training facilities, industries, light industries, rural industries
Tourist related	camping grounds, caravan parks, charter and tourism boating facilities, eco-tourist facilities, hotel or motel accommodation, serviced apartments, tourist and visitor accommodation
Recreational, non- urban and agricultural	recreation areas, recreation facilities (outdoor), agricultural produce industries, agriculture, agritourism, aquaculture, Intensive plant agriculture, cemeteries, oyster aquaculture, pond-based aquaculture, tank-based aquaculture, bee keeping (extensive agriculture)

Non-habitable	fences, swimming pools, landscaping, patios, decks, al fresco areas, water reticulation systems, water recreation structures, wharf or boating facilities, business identification signs, signage, boat launching ramps, boat sheds, car parking spaces, car parks, cemeteries, jetties, mooring pens, moorings
Concessional	In the case of residential development: • An addition or alteration to an existing dwelling of not more than 10% or 30m² (whichever is lesser) of the habitable floor area which existed at the time of original formal planning approval. • The construction of a shed with a maximum floor area of 150m². • Rebuilt dwellings which substantially reduce the extent of flood affectation to the existing building. Other development: • An addition or alteration to an existing building of not more than 10% or 100m² (whichever is lesser) of the floor area which existed at the time of original formal planning approval. • Rebuilt development which substantially reduces the extent of flood affectation to the existing development. • A change of use which does not increase flood risk with the exception of change of use to sensitive or hazardous uses. • Subdivision that does not involve the creation of new flood prone allotments with potential for further development.

Table 10.1 Land use by vulnerability to flooding

10.4.3.2 Flood Related Development Controls

The table below outlines the controls used to manage flood risks to development.

Management considerations	No.	Planning controls
Finished Floor levels		
Allows for varying floor levels for different development types and parts of a development considering flood constraints and the cost of future flood damages and disruption	F1	Floor levels to be equal to or greater than the 5% Annual Exceedance Probability flood level plus freeboard, unless justified by site-specific assessment
	F2	Habitable floor levels to be equal to or greater than the Flood Planning Level or a minimum of 225mm above finished ground (whichever is higher)
	F3	Floor levels to be equal to or greater than the Design Flood Event Level
	F4	Floor levels to be as close to the design flood event level as practical and no lower than the existing floor level
	F5	Floor levels of shops or commercial premises to be equal to or greater than 300mm above the 1% Annual Exceedance Probability flood level
	F6	Garage floor level to be to be equal to or greater than 100mm above the 1% Annual Exceedance Probability flood level
	F7	Driveway level to basement access must have a crest level no lower than the Flood Planning Level
	F8	Carpark floor level for at-grade or open carparks is to be no lower than the 1% Annual Exceedance Probability flood level minus 200 mm
	F9	The height difference between the natural ground level and a habitable floor level is to be a maximum of 3 metres
Building components and method		
Flood compatible building considerations for varying development types. Encourages a means of reducing flood damages to individual properties	B1	All structures to have flood compatible building components at or below or at the Flood Planning Level
	B2	All structures to have flood compatible building components at or below or at the Probable Maximum Flood level
	B3	Type and location of fencing and electrical equipment (such as outlets, meter boxes, battery storage, solar inverter facilities, EV charging point) and communication facilities below or at the Probable Maximum Flood must ensure unobstructed flow
	B4	The power points, communication facilities are to be set at the Flood Planning Level or higher
Structural soundness		
Identifies the scale of assessment required to demonstrate structural soundness	S1	A Flood Impact Risk Assessment is required that includes certification that any structure can withstand the forces of floodwater, debris and buoyancy up to and including the Defined Flood Event and applied to the Flood Planning Level

to minimise cost of future damages and potential for development components to become floating debris	S2	Applicant to demonstrate that any structure can withstand the forces of floodwater, debris and buoyancy up to and including a Defined Flood Event
	S3	Applicant to demonstrate that any structure can withstand the forces of floodwater, debris and buoyancy up to and including a 0.05% Annual Exceedance Probability flood. Where Shelter in Place is proposed as an emergency response measure, the structure shall be certified to withstand flood forces up to the PMF event.
Flood affectation		
Identifies how the impacts of the development are to be managed and the risks to the development and its users are to be assessed and considered based on the scale and type of development, its impacts on the existing community and the risk	FA1	A Flood Impact Risk Assessment is required to certify the development will not adversely affect flood behaviour in a way that results in detrimental increases in the potential flood affectation of other development or properties.
	FA2	The impacts of the development on flooding are to be investigated and addressed.
	FA3	A Flood Impact Risk Assessment is required to address future flood risk scenarios
Emergency response		
Considers the availability of existing emergency management arrangements including flood warning, evacuation routes, evacuation capacity, etc. and potential impacts of the development on evacuation capability of existing development	E1	Reliable access and egress for pedestrians required during a 1% Annual Exceedance Probability flood
	E2	Reliable access and egress required for pedestrians and vehicles from anywhere from within the building to an area of refuge above the Probable Maximum Flood level.
	E3	Reliable egress is required from the lowest habitable floor of the building to an area of refuge above the Probable Maximum Flood level
	E4	The emergency response strategy of the development is consistent with any relevant local or state flood plan developed by the NSW State Emergency Service
	E5	Applicant to demonstrate that evacuation of any proposed development proposal can be undertaken in accordance with the relevant local or state flood plan developed by the New South Wales State Emergency Service
Management and design		
Considers additional factors needed to manage ongoing flood risk	M1	Applicant to demonstrate that potential development as a consequence of a subdivision or development proposal can be undertaken in accordance with the relevant Development Control Plan, State Environmental Planning Policy and/or Flood Impact Risk Assessment
	M2	Site Flood Safe plan is required for home or business or farmhouse to address safety and property damage issues (including goods storage and stock management) considering the full range of flood risk

	M3	Materials that may cause pollution or be potentially hazardous during a flood should be contained or not be stored below the 1% Annual Exceedance Probability flood level
	M4	No new structures are to be located within a drainage easement, and any new development is to be designed to be compatible with any existing drainage easements.
	M5	Proposed landscaping below or at the Flood Planning Level must not raise flood levels and/or adversely redirect overland flows.
Landfill		
Flood compatible building considerations for varying development types. Encourages a means of reducing flood damage to individual properties. Should be read in conjunction with Blacktown DCP 2015 Part H (Landfill Guidelines).	L1	No net loss of flood storage and/or conveyance capacity of any floodway up to the DFE within the floodway
	L2	No net loss of flood storage within the Flood Planning Area
	L3	The alteration of local drainage or overland flowpath and/or natural watercourses must not adversely affect adjacent properties.

Table 10.2 Flood Related Development Controls

10.4.3.3 Flood Related Development Controls

The table below outlines the controls used to manage flood risks to development affected by flooding.

Notes:

N Not relevant

X Unsuitable land use

Flood Risk Precinct	Land-use category	Planning controls						
		Floor level	Building components	Structural soundness	Flood affectation	Emergency response	Management and design	Landfill
Riverine high flood risk, Overland flow high flood risk	Sensitive and hazardous use and facilities	X	X	X	X	X	X	X
	Subdivision	X	X	X	X	X	X	X
	Residential	X	X	X	X	X	X	X
	Commercial and industrial	X	X	X	X	X	X	X
	Tourist related	X	X	X	X	X	X	X
	Recreation & non-urban	F1	B1, B4	S1	FA1	E4	M2, M3	L3, L4
	Non-habitable	F1	B4	S1	FA2	N	M3	L3, L4
	Concessional	F4, F6, F9	B1, B4	S1, S2	FA1	E4	M2, M3	L3, L4

Flood Risk Precinct	Land-use category	Planning controls						
		Floor level	Building components	Structural soundness	Flood affectation	Emergency response	Management and design	Landfill
Riverine medium flood risk, Overland flow medium flood risk	Sensitive and hazardous use and facilities [1]	X	X	X	X	X	X	X
	Subdivision	N	N	N	FA1, FA3	E4, E5	M1	L1, L2[2], L3
	Residential	F2, F6, F7	B1, B3	S1	FA1	E3, E4	M2, M3	L1, L2[2], L3
	Commercial and industrial	F5	B1, B3, B4	S1	FA1	E2, E4	M2, M3	L1, L2[2], L3
	Tourist related	F2	B1	S1	FA1	E3, E4	M2, M3	L1, L2[2], L3
	Recreation & non-urban	F1, F2	B1	S1	FA1	N	M2, M3	L3, L4
	Non-habitable	F2, F4, F6	B1	S1	FA2	N	M2, M3	L3, L4
	Concessional	F2, F4, F6, F9	B1	S1	FA2	E5	M2, M3	L3, L4

Riverine low flood risk, Overland flow low flood risk	Sensitive and hazardous use and facilities	F3, F7, F8	B2	S3	N	E2, E4	M1, M2, M3	N
	Subdivision	N	N	N	FA3	E1	M1	N
	Residential	N	N	N	N	E5	N	N
	Commercial and industrial	N	N	N	N	E5	M2	N
	Tourist related	N	N	N	N	E5	M2	N
	Recreation & non-urban	N	N	N	N	N	M2	N
	Non-habitable	N	N	N	N	N	N	N
	Concessional	N	N	N	N	E5	N	N

[1] Permitted in overland flow precincts with the same controls as residential

[2] Not required in overland flow precincts

Table 10.3 Flood Related Development Controls matrix

10.5 Work as executed plan

When a work as executed plans is required by Council, it must be prepared by a Registered Surveyor and contain the following information:

(a) the boundary of the allotment of land and its location with respect to the road that it fronts

(b) the extent of the filling in relation to the lot boundaries

(c) the level to Australian Height Datum at 15m centres along the top extremities of the fill and in between such extremities at a 15m grid spacing, and

(d) the origin of the datum and the Permanent Mark or State Survey Mark Number, if applicable, used to prepare the plan and a bench mark within 200m of the particular site if the origin of the levels is beyond that distance.

Appendix 1 Exempt vegetation

Council recognises that in some instances vegetation can be removed without seeking approval from us. The situations below detail where vegetation exemptions may be applied.

A.1.1 Exempt vegetation work

A permit is not required for the following work to vegetation under this Development Control Plan:

a. the pruning or removal of non-native vegetation, NOT including prescribed trees in this Development Control Plan, for the maintenance of properties

b. removal of vegetation comprising any of the priority weed species as detailed within Hawkesbury River County Council Priority Weed List that is not required for habitat purposes

c. the clearing of non-native vegetation where deemed by Council in writing and shown by recorded photographic evidence to be dead **and** is not required for habitat for native fauna

d. the clearing of non-native vegetation where deemed by Council in writing and shown by recorded photographic evidence to be an imminent risk to human life or is likely to cause substantial damage to property in the near future

e. native vegetation clearing approved under a Rural Fires Act permit for hazard reduction.

You are advised to contact Council if you require clarification on the exempt vegetation provisions.

Appendix 2 Exempt tree species and tree work

Council understands that in some situation's trees can be removed without seeking a permit from us. These exempt situations and tree species are listed below.

A2.1 Exempt tree species list

The following species of trees and vegetation are undesirable in Blacktown City and are exempt from requiring development approval or a tree and vegetation permit for their removal.

Botanical name	Common name
Acacia baileyana	Cootamundra Wattle
Acer negundo	Box Elder Maple
Ailanthus altissima	Tree of Heaven
Bambusa species	Bamboo
Celtis occidentalis	Hackberry
Celtis australis	European Nettle

Celtis sinensis	Chinese Celtis
Cinnamomum camphora (Only if under 10 metres tall)	Camphor laurel
Citrus species	Orange, Lemon, Mandarin, Grapefruit
Cotoneaster species	Cotoneaster
Eriobotrya species	Loquat
Erythrina x sykesii	Coral Tree
Erythrina crista-gall	Cockscomb Coral Tree
Ficus elastica	Rubber plant
Gleditsia triacanthos	Honey Locust
Heptapleurum (syn. Schefflera) *arboricola*	Dwarf Umbrella Tree
Heptapleurum (syn. Schefflera) actinophylla	Umbrella Tree
Lagunaria patersonii	Norfolk Island Hibiscus
Ligustrum lucidum	Large Leaf Privet
Ligustrum sinense	Small Leaf Privet
Morus species	Mulberry
Musa species	Banana plant
Nerium oleander	Oleander
Olea europaea	European Olive
Olea europaea subsp. Cuspidate	African Olive
Populus nigra	Lombardy Poplar
Robinia species	Robinia
Salix species	Willows
Syagrus romanzoffiana	Queen or Cocos Palm
Triadica sebifera (syn. Sapium sebiferum)	Chinese Tallow Tree

Toxicodendron succedaneum	Rhus or Wax tree
Various species	Trees grown for their fruit excluding mango Mangifera indica) and Avocado (Persea americana)

A2.1 Exempt tree species list

A.2.2 Where exemptions do not apply

The exemptions listed above do not apply to:

a. any work on a tree that is or is located on a heritage listed property, a property listed within a heritage conservation area, Aboriginal object or Aboriginal place of heritage significance

b. any tree that is listed on the Significant Tree and Vegetation Register

c. any land mapped as 'Biodiversity' on the Blacktown Local Environment Plan 2015 natural Resources Map

d. threatened ecological communities or land that provides or has the potential to provide habitat for native fauna or fauna classified as vulnerable or threatened under the *Biodiversity Conservation Act 2016* or the *Environmental Protection and Biodiversity Conservation Act 1999* (Commonwealth)

e. work that is contrary to a development consent that requires trees to be retained, or

f. a tree and vegetation on public land (eg. within the road reserve, parkland etc).

A.2.3 Where a Tree work permit is not required

A permit is not required (with the exception of criteria outlined above in 'Where exemptions do not apply') to remove or prune a tree that is classified as follows.

a. 'Dead' - means a tree that is no longer alive and is not a habitat tree (means a tree that contains hollows used by fauna). Photographic evidence clearly identifying the tree as being dead is required.

b. 'Dying tree' - means a tree that is in such an advanced state of decline due to damage or disease—where an insufficient amount of live tissue, green leaves or branches exist to sustain life—that tree death is unavoidable. Evidence in the form of a written statement, from an Arborist, with minimum qualification of Australian Qualification Framework (AQF) Level 5 in arboriculture, is required.

c. 'Dangerous Tree' - means it is in imminent danger from falling and the action is necessary to protect human life, buildings, or other property. Evidence, in the form of a written statement, from an Arborist, with minimum qualification of Australian Qualification Framework (AQF) Level 5 in arboriculture, is required.

d. Not meeting the definition of a prescribed tree.

e. Pruning of trees to maintain a 500mm clearance from house (private) service wires. This may be to comply with a direction under Section 48 *Electricity Supply Act 1995*. The exemption applies to tree branches only, not trunks.

f. Any removal of trees or abatement of branches required to comply with an order issued by the Land and Environment Court (L&EC) under provisions in Trees (Disputes Between Neighbours) Act 2006 unless otherwise directed by the Court.

g. Any removal of trees or abatement of branches required to comply with an order issued by an authorised Officer of Blacktown City Council under provisions in the *Local Government Act 1993*.

h. Trees listed as weeds through the Hawkesbury River County Council (HRCC) in line with the Biosecurity Act 2015 and are not required for habitat purposes.

i. Clearing of vegetation under the 10/50 Vegetation Clearing Code of Practice (Landowners must check the New South Wales Rural Fire Service website and open the 'online tool' to find out if their property is within the clearing entitlement area). All clearing must be per this Code of Practice and apply all relevant conditions to the property.

j. The removal or pruning is an action required, or allowed, to be carried out by, or under, the *Rural Fires Act 1997* without development consent.

k. The removal of torn or dead branches but does not include whole trees.

l. Pruning to maintain a hedge, at existing dimensions, or pruning of trees to create a hedge, where the component trees do not qualify as prescribed trees.

m. Where tree removal, pruning, maintenance and replacement is undertaken by Council or its duly authorised servants or agents, on land owned by, or under the care, control and management of Council.

All work must be undertaken in accordance with the most current edition of Safe Work NSW Code of Practice for the Amenity Tree Industry and the guidelines in, the current version of, Australian Standard AS4373 Pruning of amenity trees.

A.2.4 Evidence accepted for exempt Tree work

Any of the following will be accepted as evidence and can be requested by us to ascertain if the exempt works were warranted:

a. Photographs of the tree before removal or pruning occurs which clearly show:
   - the species of the tree
   - the location of the tree within the property and relative to other structures on the site, and
   - a detailed arboricultural assessment report, prepared by an Australian Qualification Framework (AQF) Level 5 or higher, Arborist, which clearly demonstrates that a tree is dying and the likely cause of its death.

b. In the case of a "dangerous tree", photographs of the tree which:
   - clearly identify the species of tree
   - clearly identify the location of the tree, and
   - clearly demonstrate that it was an immediate danger to property or persons and that the risk could not be alleviated in any alternative way other than by removal of the tree.